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*The Ideology
of
Pakistan
and
its Implementation*

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by
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with a Foreword
by
FIELD-MARSHAL MOHAMMAD AYUB KHAN,
HP, HJ,
PRESIDENT OF PAKISTAN.

1959.

SH. GHULAM ALI AND SONS,
LAHORE.



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TO
THE PEOPLE OF PAKISTAN

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Before this book goes to press, I feel obliged to express my thanks to all those who have assisted me in the writing of it. I owe a tremendous debt to Miss Sheila McDonough of McGill University, Montreal (Canada) for helping me generously with criticisms and suggestions. My very grateful thanks also to Mrs. Rachel Bennett of Cambridge University, Cambridge (England), and Syed Munawwar Husain Bokhari of Muslim High School, Lahore for reading the proofs of this book.

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To Field-Marshal Mohammad Ayub Khan I can only say that had it not been for his encouragement, I should never have believed that this book would interest a wide enough public to be worth publication.

JAVID IQBAL

Allama Iqbal Road,
Lahore, October 1959.

Foreword

by

**Field-Marshal Mohammad Ayub Khan, HP, HJ,
President of Pakistan**

Ever since taking over the reigns of the Government in the country, I have been thinking very hard as to how best to weld the people into unity and how to resolve the internal and external problems facing the country. There is no doubt that our internal and external problems are enormous, but the manner in which they can be resolved is comprehensible and also capable of implementation. So, with God's grace, it may be possible to resolve them wholly or partially one day. But how to weld the people into unity is a matter which affects the realm of faith and spirit and to which I have not been able to find an effective answer so far, and yet it is imperative that an answer must be found as soon as possible, otherwise we run the risk of being overwhelmed by other forces and ceasing to exist as an independent people. In fact, then there is every possibility of losing Pakistan. This must not be allowed to happen under any circumstances. Hence the extreme urgency of finding an answer which is comprehensible, tangible, arouses spontaneous and consistent enthusiasm and is workable in the light

of the requirements of modern life. In this connection, I have studied the writings of some eminent philosophers of the country and have given the matter considerable thought myself. My broad findings are as follows:—

Man as an animal is moved by basic instincts for the preservation of life and the continuance of race, but as a thinking being and above all, as a being conscious of his power of thinking, he has the power to control and modify his instincts. In addition, he has a great yearning for an ideology for which he will lay down his life and sacrifice all more readily than for anything else. What it amounts to is then that the more noble and eternal an ideology, the better the individual and the people professing it. Their lives will be much more creative and richer with tremendous power of cohesion and resistance. Such a society can conceivably be bent but never broken.

Such an ideology with us is obviously that of Islam. It was on that basis that we fought for and got Pakistan, but having got it, we failed to order our lives in accordance with it. The main reason is that we have failed to define that ideology in a simple and understandable form. Also in our ignorance we began to regard the Islamic ideology as synonymous with bigotry and theocracy, and sub-

consciously began to fight shy of it. The time has now come when we must get over this shyness, face the problem squarely in the face and define this ideology in simple but modern language, and put it to the people, so that they may use it as a yard-stick for modelling their conduct on and a touch-stone to judge their conduct by. Unless we do that the ideology of godlessness which is all around us will come rushing in. It has no shyness and no qualms about rushing in without invitation.

In order to define the ideology of Islam and to apply it to present conditions of life, and especially to the conditions of life in Pakistan, it seems the following broad outline will have to be elaborated:—

- (a) Singleness of God. Man's urge to love Him by thought and deed.
- (b) All human beings are equal before God. Therefore, the basic equality of men without distinction of colour, race and location.
- (c) In such a society national territorialism has no place, yet those living in an area are responsible for its defence and security.
- (d) If the above are the ingredients of religion, then religion has to have a say in matters both temporal and secular. Define how?
- (e) This world is designed to be lived in constructively and fruitfully. It is not designed to be shunned. In order that crea-

tive power is developed and is available for use, modern education is absolutely vital.

- (f) Define the duties of the State and that of the individual to the State. What is the definition of a "Momin"?
- (g) State fundamental rights for the individual which are wholesome for the individual as well as the State.
- (h) What method should we adopt to inculcate the above philosophy in the present generation and the future generations?
- (i) Considering that the people of Pakistan are a collection of many races with different history, race and background, how can they be welded into a unified whole whilst keeping intact their local pride, culture and traditions?
- (j) How can the offensive of Communism and Hinduism against the ideology of Islam be combated?

The requirement is to express the above in simple, brief, but catchy language which will also appeal to reason. It should be comprehensible and attractive to the largest number of people and capable of being put into practice.

On my request, many scholars and men of learning are applying their minds seriously to these important questions. The thesis produced

by Dr. Javid Iqbal is in response to this request. This is a brilliant effort and provides a rational and enlightened approach to some very fundamental problems. I congratulate Dr. Javid Iqbal on this illuminating document and hope it will help stimulate still further thought and inquiry into the basic values of an ideology which befits our moral and spiritual traditions, and, at the same time, fulfils our material aspirations in the context of the world of today and tomorrow.

MOHAMMAD AYUB KHAN

President's House,
Karachi, 9th October, 1959.

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Chapter 1

ISLAM AS A VITAL ORGAN OF THE STATE

The primary essentials of Islam are its structural principles of the Unity of God and the Finality of Muhammad's Prophethood, supplemented by the five well-defined *Obligations of the Faith* (Prayer, Fasting, Alms-giving, Pilgrimage—when one can afford it, and Holy War—when it is permissible). It is because of the belief of the Muslims in these essentials that there exists practically a uniform spiritual atmosphere in the entire Muslim world.

Islam seeks human unification through the minds of men rather than through tribal or racial relationships. It aspires to emancipate humanity from the earth, and since blood relationship implies earth-rootedness it rejects blood relationship as the basis of human unity. For Islam all human life is spiritual in its essence. It, therefore, regards everybody as a centre of latent power which could be developed by cultivating the type of character that Islam has defined for humanity.

In spite of the racial, linguistic and territorial distinctions among the Muslims there are no social barriers among them because all Muslims regard themselves as equal before God. Islam accepts

the existence of racial, linguistic and territorial diversity only for the sake of ease of reference and for the purpose of identification and not with the object of restricting the social horizon of the Muslim Community. God says in the Quran: "Verily we have made you into tribes and sub-tribes so that you may be identified, but the best among you in the eye of God is he who is the purest in life."¹* Hence the object of Islam is to assimilate this racial, linguistic and territorial diversity through the social mechanism it engenders. It teaches that the multiplicity of free and independent units in the Muslim world should adjust and harmonise their racial and other rivalries through the unifying bond of a common spiritual aspiration. Thus it is in this sense that to the Muslims Islam is their patriotism as well as their faith.

According to Ibn Khaldun there are three important organs (*wazaif*) of the Islamic State. These are the *Imamat* (the office of the Head of State), the *Fatwa* (the office of the Jurist) and the *Qaza* (the office of the Judge).²

As for the *Imamat*, ever since the abolition of the Caliphate in Turkey (i.e., since 1924) the Muslim world seems to have accepted, expressly or impliedly, the Turkish legal opinion (*Ijtihad*)

* Notes are appended at the end.

based on the arguments of the *Khwarji* and *Mutazilli* jurists of earlier Islam that the *Imamat* could be vested in a body of persons or an elected assembly. The growth of a republican spirit or the rapid development of legislative assemblies in Muslim countries has been regarded as a return to the original purity of Islam. Consequently the Constitution adopted by a Muslim Assembly and a President elected under that Constitution would be a legitimate substitute for the former *Imam*, *Khalifah*, *Sultan* or *Amir* as the Head of an Islamic State.

As for the *Fatwa*, the second important organ (*wazifah*) of the Islamic State, this office was meant for those judges (*Quzzat*) who had perfect knowledge of the four principal sources as well as the branches of Islamic jurisprudence (*Fiqh*) and had gained experience in the application of rules derived from those sources. Such judges were placed in the category of *Arbab-al-Ijtihad* (those who are capable of interpreting law) and some of them were appointed jurists (*Mufti*) by the Head of the State. The jurist was empowered to give the decision (*Fatwa*) whether a specific legislation made by the Head of the State was in conformity with or repugnant to the Injunctions of Islam. In the Ottoman and Mughal Empires this office gradually developed and was transformed into one of the numerous

mistakes in their interpretation of law. "How can we" he raised the question, "exclude or at least reduce the possibilities of erroneous interpretation?" His answer was as follows: "The Persian Constitution of 1906 provided a separate ecclesiastical committee of Ulema—'conversant with the affairs of the world'—having power to supervise the legislative activity of the Majliss. This, in my opinion, dangerous arrangement is probably necessary in view of the Persian constitutional theory. According to that theory, I believe, the king is the mere custodian of the realm which really belongs to the Absent Imam. The Ulema, as representatives of the Imam, consider themselves entitled to supervise the whole life of the community; though I fail to understand how, in the absence of an apostolic succession, they establish their claim to represent the Imam. But whatever may be the Persian constitutional theory, the arrangement is not free from danger, and may be tried, if at all, only as a temporary measure in Sunni countries....The only effective remedy for the possibilities of erroneous interpretation is to reform the present system of legal education in Muhammadan countries, to extend its sphere, and to combine it with an intelligent study of modern jurisprudence."⁶

Anyway, since the public opinion in Pakistan went against the recommendation for the appoint-

ment of a Board of Ulema which should supervise the legislative activity of the National Assembly, the Constituent Assembly rejected this proposal and there were hopes that in the forthcoming Constitution of Pakistan the Supreme Court would be provided with the advisory jurisdiction regarding the issue whether the laws that the Assembly passed were in conformity with or repugnant to the Injunctions of Islam.

However, under Article 162 of the 1956 Constitution, the Supreme Court was given an advisory jurisdiction but only in secular legal matters. (Article 162 ran thus: "If at any time it appears to the President that a question of law has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that court for consideration and the court may, after such hearing as it thinks fit, report its opinion thereon to the President.") If the Supreme Court had been provided with such advisory jurisdiction also in matters connected with the interpretation of Islamic law, then its function in its advisory capacity would have been similar to that of the *Fatwa*.

As for the *Qaza*, the third important organ (*wazifah*) of the Islamic State, although this office was confined to the administration of Justice and Equity (the department of Justice was a separate

department from the very beginning in the Islamic State) the Judge (*Qazi*), unlike our present-day judges, was granted certain special powers in addition to the administration of criminal and civil justice. For instance, he was empowered to administer the estate of the deceased by checking or giving sanction to legal documents such as wills, by paying off debts and legacies, and by dividing the inheritance among the heirs of the deceased. He was authorised to administer religious endowments (*awqaf*). He was empowered to give sanction to the marriage tie and to perform the marriage ceremony (*Nikah*), and he was authorised to lead the *Juma* and *Eidan* congregational prayers.

In the Indian sub-continent the British abolished the *Qaza* in 1864. It caused a great deal of restlessness among the Muslims for there was an old Decision (*Fatwa*) to the effect that India would continue to remain *Dar-al-Islam* (Country of Islam) so long as the *Qaza* was retained. India had been declared *Dar-al-Harb* (Country of War) and the Muslims stopped attending the congregational prayers. The possibility of ensuing illegality of the Muslim marriage contracts, the unlawful administration of the estate of a deceased Muslim or the malversation of the Muslim religious endowments aggravated their dislike for the British rule.

At any rate, the abolition of the *Qaza* came to stay and it is since 1864 that the Muslims of the Indian sub-continent have been deprived of one of the three most important organs of the Islamic State. This abolition led to a dislocation in the purely Islamic system of legal administration to which we were accustomed.

We, at the same time, sustained another big loss. The *Qazi's* connection with the Muslims was vital because by giving sanction to the marriage tie, by looking after the religious endowments, by leading the congregational prayers and by providing a source for the eventual appointment of the *Mufti*, he brought Islam closer to the Muslims. In fact, it was through the means of the *Qazi* that the Islamic State made Islam enter the everyday life of the Muslims. By the abolition of the *Qaza*, therefore, the Muslims (particularly the lower orders of Islam) lost contact with Islam proper and became an easy prey to the exploitation of the free-lance *Mullah* and his unauthorised interpretation of Islam. Thus it is since 1864 that the *Mullah* began to interfere in our collective life and he continues to do so up to today.

While presenting his views on the Islamic State, Iqbal has not discussed in detail the significance and importance of the *Qaza* as one of the most vital organs of the Islamic State. However,

he was fully aware of the problems which have arisen from the *Mullah's* interference in the collective life of the Muslim masses. Ever since the Muslim revival, reformers have fought against the forces of disintegration in the world of Islam. These forces, in Iqbal's opinion are: *Mullahism*, that resulted from the intellectual stagnation among the *Ulema* of Islam; *Sufism*, that led to the deterioration of the will to act among the Muslims; and *Sultanate*, that safeguarded its own interests at the cost of the people.⁷ Although *Sultanate* is disappearing due to the gradual awakening of a republican spirit in the Muslim world, *Mullahism* and *Sufism* continue to retain their paralysing hold over the Muslim masses.

It would not be out of place to mention here that the *Baghdad Caliphate*, even when at its lowest ebb, never let go of the exclusive privilege of appointing the *Qazis* and the *Imams* of the *Mosque*. The *Imams* of the *Mosque*, therefore, just as the *Qazis* and the *Muftis*, were appointed by the Head of the State in accordance with the *Tradition* quoted in the *Mishkat* in which the Prophet is reported to have said that only the Head of the Islamic State or the person or persons appointed by him are entitled to preach to the people. On the authority of this *Tradition*, Iqbal maintains that in a modern Islamic State only state-appointed *Ulema* should be entitled to preach. When

Ata-Turk promulgated a law to this effect in Modern Turkey, Iqbal welcomed this reform in the following words: "As to licentiate *Ulema* I would certainly introduce it in Muslim India if I had the power to do so. To the inventions of the myth-making *Mullah* is largely due the stupidity of the average Muslim. In excluding him from the religious life of the people the Ata-Turk has done what would have delighted the heart of an Ibn-i-Taimiyyia or a Shah Wali Ullah."⁸

Iqbal disapproved of adopting the Western conception of secularism in the world of Islam. In his opinion the principle of secularism has derived from the fundamental duality of spirit and matter in Christianity, and, therefore, this principle has resulted in the elimination of religion from the collective life of Western peoples, that is, it has led to the development of the secular State. In Europe Christianity developed as a monastic order establishing Church-organisations in a profane world. Thus Christianity as a religion has nothing to do with the affairs of the world. Consequently the State had to be founded on the principle of secularism. Islam, on the contrary, was, from the very beginning, a civil society with laws, civil in their nature (though believed to be revelational in origin). Although as a religion Islam has no country and as a society it has neither any specific language, nor any specific script nor any specific

dress, it engenders a social mechanism which gives an internal unity and homogeneity to the Muslim Community as a whole. Thus the introduction of the principle of secularism in the world of Islam is uncalled for and unthinkable.

At any rate, Iqbal sees no harm in separating the department of religion from the other departments of the Islamic State particularly for administrative convenience. In his opinion the Islamic idea of the division of the religious and the other functions of the State must not be confounded with the European idea of the separation of Church and State. The former is only a division of functions for administrative convenience whereas the latter is based on the fundamental dualism of spirit and matter in Christianity.

He maintains: "In the history of Muslim political experience the separation has meant only a separation of functions, not of ideas. It cannot be maintained that in Muslim countries the separation of Church and State means freedom of Muslim legislative activity from the conscience of the people which has for centuries been trained and developed by the spirituality of Islam."⁹

There are numerous instances of the division of functions in the Islamic State in past Islamic history. The doctrine of the *Major Occultation* of

the Imam in a sense effected such a functional division long ago in *Shia* Iran. Similarly in the Ottoman and the Mughal Empires the gradual creation of the offices of *Sheikh-al-Islam* and *Ministers* indicates that for administrative convenience the separation of the department of religion from the other departments of the State was not regarded as repugnant to Islamic Injunctions. Since the separation of the department of religion from the other departments of the Islamic State cannot possibly mean the exclusion of Islam from the collective life of the Muslims, then for administrative convenience, Iqbal maintains, there is no harm in carrying out such a division of functions in the modern Islamic State.

Could the development of a materialistic outlook in the Muslim countries be regarded as hostile to Islam? Iqbal's answer is worth quoting: "Islam has had too much of renunciation; it is time for the Muslims to look to realities. Materialism is a bad weapon against religion; but it is quite an effective one against Mullah-craft and Sufi-craft which deliberately mystify the people with a view to exploit their ignorance and credulity. The spirit of Islam is not afraid of its contact with matter. Indeed the Quran says: 'Forget not thy share in the world.....'. Considering the history of the Muslim world during the last few centuries, the progress of a material-

istic outlook is only a form of self-realization."¹⁰

There is no denying the fact that in 1953 Pakistan was declared an *Islamic Republic*, and the Constitution, which was promulgated in 1956, was called *the Constitution of the Islamic Republic of Pakistan*. A question may be asked: to what extent was our Constitution's claim to be the Constitution of an *Islamic Republic* justified?

The 1956 Constitution was given the name of the Constitution of the *Islamic Republic of Pakistan*, and in its Part III the Directive Principles of State Policy were also enumerated. But as is apparent from the words of Article 23 (2) these provisions were not enforceable in any court. In other words if these provisions had any significance it was merely idealistic but not practical since they were completely devoid of force of law.

If Islam was at all given any practical legal significance in the 1956 Constitution it was through two means. Firstly, through Article 32 (2) under which a person was not qualified for election as President unless he was a *Muslim*, and secondly, through Article 197 and 198 (in Part XII of the Constitution: entitled General Provisions: Chapter I—Islamic Provisions). Under Article 197 the President was obliged to set up an organisation for Islamic research and instruction in advanced studies to assist in the reconstruction of

Muslim society on a truly Islamic basis; and under Article 198 there existed a possibility that after the lapse of a period of five or six years the existing law of Pakistan would be brought into conformity with the Injunctions of Islam.

As for the condition that no person could be eligible for election as President unless he was a *Muslim*, this condition does not in any way justify the claim of the 1956 Constitution to be *Islamic* because in almost all the secular states the elected Head of the State professes the religion (or belongs to the sect) the adherents of which constitute the majority in the country.

Secondly, if under Article 197 the President of Pakistan was obliged to set up an organisation for Islamic research and instruction in advance studies, nothing was done in this connection. If any organisations for Islamic research were established, our students failed to derive any benefit from them, consequently the object of reconstructing the Muslim society on a truly Islamic basis through these organisations was never achieved.

Thirdly, under Article 198 even if the existing law of Pakistan could have been brought into conformity with the Injunctions of Islam, such a possibility was deferred and it might have taken five, six or even more years before the matter

could have been considered seriously by the chosen representatives of the people of Pakistan.

Article 198(1) ran thus: "No law shall be enacted which is repugnant to the Injunctions of Islam as laid down in the Holy Quran and Sunnah, hereinafter referred to as Injunctions of Islam, and existing law shall be brought into conformity with such Injunctions." It is submitted that the Constitution did not create any supervising authority which could determine whether the legislative activity of the National Assembly was repugnant to the Injunctions of Islam as laid down in the Holy Quran and Sunnah. Furthermore, the object of our present generation is to interpret the Injunctions of Islam in the light of *contemporary experience* and the *altered conditions* of modern life, and not to endeavour fruitlessly to bring the existing law into conformity with the *traditional interpretation* of the Injunctions of Islam.

It would be correct to assert that the 1956 Constitution was abrogated before having been actually put to the test, but the fact remains that the position which Islam occupied in the Constitution (in the shape and form it had been presented) amounted to a *legal fiction* for neither was it given any force of law nor did it have any practical applicability.

If the Constitution of a Muslim Republic were given the name of the *Constitution of an Islamic Republic*, would such a Constitution be *really* entitled to claim itself as such? Two viewpoints could be presented in order to answer the above question. The first is the idealistic viewpoint and the second, the realistic and practical.

According to the idealistic viewpoint, since it was the religious fact to which is attributed the very existence of Pakistan, the State in this country must be considered *Islamic* from its very inception. Besides this, the Constitution of a country ought not to be judged only as a code of law based on logical principles. It contains, in addition to the above, hopes, desires, dreams and aspirations of the people who adopt, enact and give to themselves that Constitution. The object of the Muslims of Pakistan is to live and run their State as Muslims; therefore, the actual Islamic State is one that aims at becoming *Islamic* ideally.

Thus to announce Pakistan as an *Islamic Republic* was to proclaim an aspiration; it was the beginning of an experiment in which the object or the end was to be attained not through a form but through a process. So according to this view there is no harm in giving the Constitution of a Muslim Republic the name of the *Constitution of an Islamic Republic* if there exist possibilities of its actually

evolving into an *Islamic* Constitution in the distant future.

According to the realistic and practical viewpoint, it is contrary to the spirit of Islam to make exaggerated claims. A good Muslim ought constantly to seek the forgiveness of God for his human failings, weaknesses and shortcomings (e.g., his self-interest, ambition, greed, corruption, social immorality and lack of even elementary honesty). He should avoid making exaggerated claims and conduct himself with sincerity, honesty, humility and modesty. He must not waste his breath in vain boasting but should devote himself entirely to silent creativity. It is the *Deed* and not the *Idea* which makes a Muslim. Thus the actualisation of Islam as a social ideal is only possible if Islam is brought directly into operation through the Constitution. The mere making of an exaggerated claim cannot lead to the solution of any problem. It is bound to lead to cynicism, disintegration and chaos. It was only because our Constitution was not *Islamic* in a definite sense that the *Islamic State* idea appeared to peter out and was neglected and frustrated, leading to a mood of disillusionment in some circles.

During the last ten years, some of the political leaders of this country did not hesitate to use Islam for their own selfish ends. Everyone who has gone through the Munir Committee Report

(1954) is aware of this unfortunate fact. So according to this view the Constitution of a Muslim Republic cannot claim itself to be *Islamic* unless and until it actually brings Islam into operation (and does not defer its operation into the future). Otherwise the claim of the people who adopt such a Constitution is merely a hollow claim far removed from reality.

How then may the religion of Islam become a vital organ of the State?

National Assembly to interpret the Law of Islam

It has already been noted that in Islam the spiritual and the temporal are not two separate domains. The nature of an act, even if secular in import, is determined by the attitude of mind with which the agent does it. Since each generation is to solve its own problems, there is no reason why the power to interpret the law of Islam should not be given to the National Assembly.

Indeed a present-day Muslim Assembly would consist of members who possessed little knowledge of the subtleties of Islamic law. But that should not embarrass us as long as we are able to produce the kind of men who rely on their healthy instincts and in the words of Iqbal, have "the courage to rush into sun-lit space and do, even by force, what the new conditions of life demanded. Such

men are liable to make mistakes; but the history of nations shows that even their mistakes have sometimes borne good fruit. In them it is not logic but life that struggles restlessly to solve its own problems."¹¹

Reform in the System of Legal Instruction

Anyway, if there exist possibilities of erroneous interpretation, then our present system of Islamic legal instruction may be reformed, and its sphere should be extended to include a careful study of modern jurisprudence.

If the study of Islamic law in the light of modern jurisprudence is encouraged in our institutions of legal instruction, then it would lead to the emergence of a group of lawyers who would be trained to interpret the law of Islam in the light of modern experience and the changed conditions of modern life. The presence of such lawyers as members of the National Assembly would certainly reduce the possibilities of erroneous interpretation of the law of Islam.

Additional Powers of the Supreme Court

Those judges of the Supreme Court who have been specially trained in the knowledge of the principal sources and the branches of Islamic jurisprudence and who have also been trained in the application of the rules derived from those

sources to modern problems, should be given special powers to determine, after such hearing (of the *Ulema* as well as the *Experts*) as they think fit, whether the legislative activity of the National Assembly was in conformity with or repugnant to the Injunctions of Islam.

Any problem of Islamic law which requires re-interpretation in the light of modern experience should be put to these judges by the National Assembly through the President in the form of a Reference; and they should report their opinion on such matters to the President. This is the only method by which the *Fatwa* could be successfully revived in modern times.

It is also suggested that the judges of the High Court and the Supreme Court should be made to wear the robes which the Islamic tradition has specified and sanctioned for them. Instead of the robes which are worn by our judges at present, they should wear the *Jubbah* and the *Amamah* (gown and turban).

The Establishment of the Ministry of Religious Affairs

The other very important reform which ought to be accomplished in this connection is the establishment of a department of Religious Affairs—like the other executive departments of the Gov-

ernment. This department should work under the Ministry of Religious Affairs.

The Ministry of Religious Affairs should take into possession all the mosques of Pakistan. Its duties should include the management and organisation as well as repair and construction of the mosques. The Ministry of Religious Affairs should be authorised to appoint the *Imams of the Mosque*. The status of these *Imams* must be similar to that of the other civil servants. They should derive fixed salaries (and come under civil servants' law and rules), and they should be provided with licences from the Government to lead the *Juma*, *Eidan* and *daily* congregational prayers as well as to preach or to deliver the *Khutba* (sermon) in the mosques. No unlicensed person should be permitted to preach or to deliver the *Khutba* in any mosque of Pakistan. To do this should be made a criminal offence punishable under the Penal Code.

The object in the above suggestion is by no means to restrict the freedom of speech or the right to express opinion in religious matters. But subject to law, public order and morality every citizen should retain the freedom of speech or the right to express opinion in religious matters, except that no unlicensed authority should be allowed to preach or deliver the *Khutba* in the mosques of Pakistan.

The objection can be raised that if the State were to appoint the *Imams of the Mosque*, then just as in the past some political leaders of this country have used the executive agencies of the State as well as the Police for their selfish ends, so in the future they may also use the *State-appointed Imams* as an additional and a very powerful weapon, and compel them to deliver only such sermons to the people which suit their requirements.

In this connection it is submitted that our claim is that *Religion* and *State* are one in Pakistan. We must not hesitate, therefore, to make *Religion* a vital organ of our *State* for the reason that we are afraid lest the *State* starts using *Religion* for its selfish ends. Have we ever thought in terms of abolishing the executive organs of the State or the Police because a few political leaders have used, or are likely to use, these State agencies for their personal ends? Never. No State can be run without its executive organs and the Police. The State-employees owe their allegiance to the State, and they are not permitted to take part in the political life of the country. There are numerous instances when the State-employees or Police officers refused to comply with the illegal demands of the *delinquent* politicians. Why should it be assumed that the *State-appointed Imams* would serve as tools in the hands of the *delinquent*

politicians? They too, like the other civil servants, would owe their allegiance to the State, and would not be allowed to take part in the political life of the country.

Everything which relates to our collective life (Food, Health, Education etc.) is an integral part and exists as a vital organ of our State; but it is rather unfortunate that in spite of our claim that *Religion and State* are one in Pakistan, Islam is not made an integral part and does not exist as a vital organ of our State. A Doctor or a Lawyer cannot pursue his profession in Pakistan unless he possesses a licence or is registered, but there is no such condition for the *Imam of the Mosque*. In our villages a *Patwari* commands greater respect than an *Imam of the Mosque*, only because he is a State-employee whereas the poor *Imam* is not.

It has been noted that when the Indian sub-continent was under Muslim rule, Islam was a vital organ of the State for only the Central Executive Authority (*the Padshah*) appointed the Judges (*Quzzat*) who were authorised to perform the duties of the *Imams of the Mosque* in addition to dispensing civil and criminal justice. / (According to the Islamic tradition the performance of the duties of the *Imams of the Mosque* by the *Judges* is a practice of antiquity. But in numerous Muslim countries the Head of the State appointed persons other than the *Judges* to perform the

duties of the *Imams of the Mosque*. In Baghdad, for instance, the Caliph always appointed different persons as *Judges* and as the *Imams of the Mosque*. It was only the Head of the State who was authorised to make such appointments because to *rule*, to *judge*, and to *lead the congregational prayers* were originally the duties of the Head of the State, who delegated his powers to others as the State expanded.).

At any rate, the British excluded Islam from the State in the Indian sub-continent for obvious reasons. Now the unfortunate position is that in spite of our freedom, in spite of our being Muslims, and in spite of our claim that *Religion and State* are one in Pakistan, it is not really and actually so, but on the contrary, we have become so accustomed to some of the institutions of the period of our subjugation that today we are afraid at the very thought of making our *Religion* a vital organ of our *State*.

In Christian countries, although the State is run on the principle of secularism, the spiritual or religious matters are left entirely in the hands of the ecclesiastic hierarchy, which looks after and administers the Churches etc. through its own agencies. It is, however, obviously impossible to establish an ecclesiastic hierarchy (or a Church organisation) in Pakistan because the separation of *Church and State* is unthinkable to a Muslim.

But since the religion of Islam has always been one of the vital organs of the State in our past history, it is necessary that it should become so in Pakistan; otherwise our claim that *Religion and State* are one in Pakistan, is absolutely baseless and without any foundation. (One of the Directive Principles of the State Policy under the 1956 Constitution was that "the State shall endeavour, as respects the Muslims of Pakistan, to secure the proper organization of Zakat, Wakfs and Mosques."—Article 25 (2) (d). This implies that the framers of the 1956 Constitution were aware of the necessity of organising the *Mosques* etc. But it seems that they had no clear idea of how to accomplish this reform).

It is also necessary that the *Imams of the Mosque* should be granted certain special powers of the *Qazi*. For instance, they should be authorised to give sanction to the marriage tie, to perform the marriage ceremony and record such ceremonial performances in a regularly maintained Register. If possible in every mosque there should be established an office of the *Imam*. The *Imam* must look after the mosque and it should be one of his duties to provide means for the comfort and convenience of those who come to offer prayers there. The *Imam* should be empowered to employ servants to assist him in the performance of his duties. He should perform his duties without

any remuneration (other than his salary). When the Faculty of Theology is established and starts functioning in our Universities, it should be made a condition that the *Imams of the Mosque* must be graduates of Theology from our State-recognised Universities.

The *Imams of the Mosque* should be trained *social workers*. They should assist the people in solving their difficulties and problems particularly in rural areas. In their spare time they should teach children and adults in the villages, assist in building clean and hygienic houses, wells, roads etc. They should work in the fields and assist in the programmes of medical relief or other development programmes. In short they should demonstrate to the peasants and workers their feeling of equality and solidarity with them, their dedication and their willingness to work.

The Department of Social Welfare (which is at present affiliated with the Ministry of Health) should be brought under the Ministry of Religious Affairs.

The Ministry of Religious Affairs should take into possession all the Muslim religious endowments (*awqaf*) in Pakistan and appoint administrators to manage them.

The Ministry of Religious Affairs should take into possession all the Monasteries (*Khanqahs*

etc.) or tombs of the Saints in Pakistan and appoint administrators to manage them. There is no denying the fact that the mystical orders produced Saints of a very high quality in the world of Islam. At one time these Monasteries were the centres of attraction for the *Learned*. But now their condition is very deplorable indeed. They have been transformed into centres of moral and religious corruption. Modern Islam cannot tolerate the presence of mediaeval mysticism. Such mysticism robbed the Muslims of their healthy instincts and gave them only obscure thinking in return.

"The masses of Islam" says Iqbal, "were swayed by the kind of mysticism which blinked actualities, enervated the people and kept them steeped in all kinds of superstition. From its high state as a force of spiritual education, mysticism had fallen down to a mere means of exploiting the ignorance and credulity of the people. It gradually and invisibly unnerved the will of Islam and softened it to the extent of seeking relief from the religious discipline of the law of Islam. The 19th Century Muslim reformers rose in revolt against this mysticism and called Muslims to the broad day-light of the modern world. Not that they were materialists. Their mission was to open the eyes of the Muslims to the spirit of Islam which aimed at the conquest of matter and not flight from it."¹²

Thus it is high time that the *Mutawallis*, *Mujawars*, *Sahibzadas*, *Gaddi-Nashins*, *Sajjada-Nashins*, *Pirs* etc., connected with the Monasteries or the tombs of the Saints should either be reformed or removed from their self-created spiritual offices.

The establishment of the Ministry of Religious Affairs on the lines suggested above is the only remedy for the paralysing influence of the *Mullah* and the *Pir* over the rural and urban masses of Islam. Unless and until the *Mullah* and the *Pir* are excluded from our religious life, there is no likelihood of the successful dissemination of enlightenment, liberalism and a meaningful and vital Faith among the people of Pakistan. If Islam could become a vital organ of the State on the lines suggested above, any forthcoming Constitution, based on any form of democracy, would be, to a very great extent, justified in claiming itself to be Islamic even if it did not bear the name of the *Constitution of the Islamic Republic of Pakistan*.

Chapter 2

THE DUTIES OF THE STATE AND THOSE OF THE INDIVIDUAL TO THE STATE

According to Islamic Constitutional Theory Absolute Sovereignty over the entire Universe belongs to God¹; but since Man has been appointed God's representative (*Khalifah*) on Earth², earthly sovereignty vests in him as a sacred trust from God. (It is only in this sense that a Muslim State claims itself to be sovereign).

There are no limits prescribed to the authority to be exercised by Man so long as he does not repeal, abrogate, or supersede the Law of God (or the Injunctions of Islam). Consequently a Muslim Assembly (*Ijma*) cannot repeal the *Quran*, although it has the power to extend or limit the application of a Quranic rule of law in the circumstances when such extension or limitation is sanctioned under a *Shariah* value (*Hukm*).

If the Companions have unanimously decided a particular point, are the later generations bound by their decision? Iqbal maintains: "I think it

is necessary in this connection to discriminate between a decision relating to a question of fact and the one relating to a question of law. In the former case, as for instance, when the question arose whether the two small suras known as 'Muavazatain' formed part of the *Quran* or not, and the companions unanimously decided that they did, we are bound by their decision, obviously because the companions alone were in a position to know the fact. In the latter case the question is one of interpretation only, and, I venture to think, on the authority of Karkhi, that later generations are not bound by the decisions of the companions. Says Karkhi: 'The *Sunnah* of the companions is binding in matters which cannot be cleared up by *Qiyas*, but it is not so in matters which can be established by *Qiyas*.'"³

The first and the foremost duty of the State then, is, its *Duty to God*. It must preserve, protect and defend the Law of God. All the persons who exercise authority on behalf of the State, therefore, are individually and collectively answerable to God. They must faithfully perform the duties of their offices, bear true allegiance to the State, and preserve, protect and defend the laws of the State.

What are the duties of the State to the people? "The essence of *Tauhid* (Unity of God) as a working idea" says Iqbal, "is equality, solidarity, and freedom. The State from the Islamic standpoint,

is an endeavour to transform these ideals into space-time forces, an aspiration to realize them in a definite human organization."⁴

Endeavour to achieve the Ideal of Equality

All men are created equal. God says in the Quran: "O mankind; Be careful of your duty to your Lord who created you from a single soul and from it created its mate and spread from these two many men and women."⁵

The State from the standpoint of Islam, therefore, should endeavour to realise equality of status and opportunity among the people. It should provide basic necessities of life such as food, clothing, housing, education and medical relief to all such citizens as are permanently unable to earn their livelihood on account of infirmity, sickness or unemployment. It should provide facilities of work and adequate livelihood, and secure just and humane conditions of work. It should provide social security and make provisions for securing the well-being of the people irrespective of caste, creed and race.

It should remove illiteracy and provide free and compulsory education to everybody. It should adopt means for technical and other forms of training for the people and facilitate industrial development so that the people could participate

fully in all forms of national activity, and employment in the different spheres of life. It should achieve parity in various classes of administrative services and enable everybody to take part in the Defence Service.

God says in the Quran: "O you who believe: be maintainers of justice, bearers of witness for God's sake, though it may be against your own selves, or (your) parents or near relatives; if he be rich or poor, God is most competent (to deal) with them both; therefore do not follow (your) low desires, lest you deviate; and if you swerve or turn aside, then surely God is aware of what you do." ⁶ So in the eyes of Islamic law the rich man does not enjoy any advantage over the poor man, or the sovereign over his subject. The State from the Islamic standpoint, therefore, must endeavour to achieve equality of all its citizens before law. It should administer criminal, civil, social, economic and political justice in all the spheres of the peoples' life.

From the standpoint of Islam, the State is responsible for maintaining a fair distribution of wealth among all its citizens. God says in the Quran: "And let not those who hoard up that which God has bestowed upon them of His bounty think that it is better for them. Nay, it is worse for them. That which they hoard will be their halter on the Day of Resurrection."⁷

Thus the State should prevent the concentration of wealth and means of production and distribution in the hands of a few to the detriment of the interest of the many. It should ensure just and equitable adjustment of rights between the employers and the employees and landlords and tenants.

Since Islam's attitude towards other religions is more than that of mere tolerance, the freedom of religious belief and practice has always been guaranteed, and the Islamic State, in the past, has never interfered with or declared any of the institutions and customs of the non-Muslims null and void. God says in the Quran: "There is no compulsion in religion; truly the right way has become clearly distinct from error,"⁸ and: "And if thy Lord has pleased, all those who are in the earth would have believed, all of them. Wilt thou then force men till they are believers?"⁹

Thus the State, from the standpoint of Islam, should make adequate provision for the non-Muslims to profess freely and practise their religion. It should safeguard their legitimate rights and interests and allow them to develop their culture.

Endeavour to achieve the Ideal of Solidarity

God desires the Muslims to regard themselves as brothers, for He says in the Quran: "Only

the faithful are brethren."¹⁰ If there exists racial, linguistic and territorial diversity among the Muslims, it is merely for the purpose of identification, for God makes it abundantly clear: "The best among you in the eye of God is he who is the purest in life."¹¹ He says to the Muslims: "Hold fast, all of you together, to the rope of God, and do not scatter. And remember God's Goodness towards you, how that when you were enemies, He united your hearts and by His favour you became brethren."¹²

Thus the State, from the standpoint of Islam, should see that the regional languages and cultures of the Muslims are preserved only for the purpose of identification and not for shattering the unity and solidarity on which the Muslim Community is founded. The State should discourage tribal, racial, provincial and sectarian prejudices among the citizens, because they are contrary to the spirit of Islam.

The State should take steps to enable the Muslims to order their lives in accordance with the teachings and requirements of Islam. It should make instruction in the Quran compulsory in the State-run educational institutions and promote the observance of Islamic moral standards. It should discourage expensive living among the Muslims and abolish customs under which large sums of money are wasted by the Muslims (e.g.,

the giving of dowry at marriages). It should secure the proper organisation of *Zakat*, religious endowments (*awqaf*), Monasteries (*Khanqas*) and Mosques through its own agencies.

God says to the Muslims: "And let there be (formed) of you a community inviting to good, urging what is reputable and restraining from what is disreputable."¹³ The State, therefore, should persuade the Muslims to do what is reputable or right (*ma'ruf*) and to detect, restrain and punish what is disreputable or wrong (*munkar*) under the Law of God. It should prevent prostitution, gambling and the taking of injurious drugs. It should also prevent the consumption of alcoholic liquor and forbid the taking of interest on money loaned (*riba*).

The State should safeguard and defend the territorial integrity of the country, its independence and all its rights including its sovereign rights over land, sea and air.

In the Indian sub-continent, the Muslims did not secure territorial specification on racial and linguistic grounds. Pakistan came into being because Islam sought for a State in which to implement its social order. Thus although every Muslim citizen of Pakistan feels bound to lay down his life for his country, ideally he has always believed and still believes that Pakistan is founded on the principle of *Muslim nationalism* which

means that each and every Muslim country should be emancipated from foreign rule, irrespective of race or language, and this emancipation must not come into conflict with the basic principles of *equality, solidarity and freedom* among the Muslims as established by their religious usage and cultural coherence.

Iqbal maintains that the *Hijrah* (migration) of the Prophet from his birthplace, Mecca, to Medinah reveals the real secret of the Muslims' conception of *nationalism* i.e., the Muslims are bound together not by geographical ties but by the ties of their communal brotherhood. Islam emphasises the necessity for the founding of the Muslim Community anywhere in the world. It is probably for this reason that the Islamic era (*Hijrah*) begins from the time when the Prophet and his followers migrated from Mecca to Medinah and established an autonomous socio-political order there. Consequently the *Hijrah* (the Islamic era), as Professor Smith also observes, did not begin from the date of birth of the Prophet (as is the Christian case), neither did it begin from the death of the Prophet, nor from the year when the revelations of the Quran began to descend on the Prophet, "but from the year when the nascent Muslim community came to political power."¹⁴ This fact makes it abundantly clear that the founding of

the politically free Community is basic in Islam and that each Muslim receives his identity not because he belongs to a particular race, tribe, caste, colour, linguistic group or territory, but because he belongs to the Muslim Community.

When, on the basis of Islam, Iqbal yearned for the establishment of an *independent Muslim State* in the Indian sub-continent, he had, at the back of his mind, a desire to facilitate the realisation of the dream of Jamal-al-Din Afghani i.e., the creation of a *Union of Muslim States*. In other words, through the creation of Pakistan, Iqbal's object was to bring into actuality *Islamistan*, the vision which he had derived from his conception of International Islam. This is probably the reason why Iqbal did not suggest any name for the free and independent *Muslim State* which he desired to see created in the Indian sub-continent.

At any rate, since Islam is the basis on which Pakistan is founded, the State should strengthen the bonds of unity among Muslim countries. It should, at the same time, promote international peace and security to foster good and friendly relations among all the nations of the world, for Islam stands for peace, the God of Islam is Peace¹⁵, and a Muslim ends his prayer by invoking peace on his right as well as left.

Endeavour to achieve the Ideal of Freedom

Man, from the standpoint of Islam, is created free. There are no fetters on his liberty of thought and action. God has granted him the faculties of hearing, seeing, feeling and understanding, and He has put before him the right and the wrong path, but has left the freedom of choice with Man. God says in the Quran: "And say: The truth is from your Lord: Let him then, who will, believe: and let him who will, be an unbeliever."¹⁶ And again: "If you do well to your own behoof will ye do well: and if you do evil against yourselves will ye do it."¹⁷ Thus Man cannot bear the burden of another and is entitled to only what is due to his own personal effort. God makes it abundantly clear in the Quran: "That no bearer of burden shall bear the burden of another, and that man shall have nothing but what he strives for"¹⁸ The initiative, therefore, is entirely in the hands of Man. He is responsible for his own actions, for if he desires to change his own condition he must strive for it. God says: "Surely God does not change the condition of a people until they change their own condition."¹⁹

The State, from the standpoint of Islam, therefore, must guarantee the liberty of Man. It should guarantee Man's fundamental rights, e.g., equality of status and of opportunity, equality before law,

freedom of thought, expression, belief, faith, worship, association, assembly, movement, trade, business or profession and right to hold and dispose of property, subject to law and public morality. The State must secure the complete independence of the Judiciary.

In the light of the above, the form of the State which comes nearest to the spirit of Islam is what is called a truly democratic State in modern constitutional jurisprudence. The basis of Government according to Islam is, 'General Consultation' among the Muslims (*Al-Shura*). God says in the Quran: "And those who respond to their Lord and keep up prayer, and their rule is to take counsel among themselves."²⁰ Even the Prophet is urged by God to consult the believers, for God says: "Therefore, forgive and ask for pardon for them, and consult them in the affairs."²¹ Thus the State, from the standpoint of Islam, should be a democratic State. It must exercise its powers and authority only through the chosen representatives of the people.

The Duties of the Individual to the State

The first and foremost duty of the individual to the State is *loyalty and allegiance* to the State and respect for the laws of the State. God says in the Quran: "Obey God, His Apostle and those

who command authority over you."²² The object in this verse is to make the individual realise that if he were not to render obedience to the 'leaders of the Community' who exercise authority on behalf of the State, it would lead to disruption and chaos. The 'leaders of the Community' in the Islamic sense would be the constitutionally elected Head of the State, the chosen representatives of the people, the jurists, judges, the state officials, the military commanders etc. The rendering of obedience to the 'leaders of the Community' implies the rendering of obedience to the State, and since the State, from the standpoint of Islam, must preserve, protect and defend the Law of God, as was done by God's Apostle, the rendering of obedience to the State automatically implies the rendering of obedience to God and His Apostle.

The next important duty of the individual to the State is to *co-operate* with the 'leaders of the Community' and to put them right in case they are led astray. God says to the Muslims: "Help one another in goodness and piety and do not help one another in sin and aggression."²³ The Prophet is reported to have said: "My community would never agree on an error." When Abu Bakr was elected Caliph, he said in his inaugural address to the people: "I have been put in this office to conduct your affairs, although I am in no way

superior to you. If I do right, help me; if I go wrong, put me right."

It is only through the rendering of obedience and co-operation of the individuals, in the sense explained, that the State could preserve, protect and defend the Law of God.

Chapter 3

FUNDAMENTAL RIGHTS

The Fundamental Rights of the individual were guaranteed in written form, for the first time, under the Consitution of the United States of America. Thus, in this matter, the hundred and fifty years' old United States Constitution is generally thought to have furnished a model for the rest of the world.

Thomas Jefferson, the third President of the United States is reported to have said: "We must hold these truths to be self-evident that all men are created equal, that they are endowed by their Creator with certain inalienable rights, that among these are Life, Liberty and the Pursuit of Happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness."

Unfortunately the study of Islamic law in the light of modern jurisprudence has not yet been encouraged in Muslim countries. Had it been so, the Muslim jurists would have shown to the world that the fundamental, inalienable and residual rights of Man were guaranteed in written form, under the Quran, long before the United States Constitution was conceived, long before the American continent was discovered; nay, even long before modern Western civilisation was born.

To the Muslim, the fundamental rights guaranteed to Man under the Quran are sacred. They cannot be obscured or eradicated by any mortal power, for they constitute the *Spoken Word* of God, and are written, to borrow a phrase from Hamilton, "as with a sunbeam, by the hand of divinity itself."

The strength of the Muslim Community lies in the strength of the law of Islam. The Islamic law provides to each individual (male as well as female) a full legal status, mainly because it is based on the principle of the liberty and security of Man. A Muslim individual can enjoy his rights under the Quran so long as he does not neglect or fail to discharge his duty to his fellow beings. In other words, he can exercise his rights, and enjoy his freedom, as he pleases, within the limits which the law of Islam has prescribed. His freedom is, therefore, regulated in the common interest of the Community as a whole.

To a Muslim the law of Islam is the Will of the God of Islam who enjoins certain acts and forbids others. Thus the Muslim, as the bondsman of God, is the slave of His Law in order that he may be free. His liberty is safeguarded under his right to do whatever the law of Islam permits. Any form of collectivism, therefore, which claims to order human life in all its principal activities through the State instead of the individual being a free agent, is contrary to the spirit of Islam.

Since *freedom* is one of the important ingredients of *Tauhid* (unity of God), the State, from the standpoint of Islam, cannot be any other than democratic or republican. It may assume the form of a parliamentary, cabinet or presidential system; the method of representation which lays the responsibility on the elected representatives of the people is definitely essential for achieving the ideal of *freedom* as understood by Islam.

The State which is governed under the Islamic Law is called *Dar-al-Islam* (the Abode of Peace) obviously because it guarantees the security of the person and the property of the individual in order that no Man should feel afraid of another. It safeguards the security of the individual's life, property, family, marriage, children, public worship, thought, expression, character, reputation, movement, trade and occupation; and constantly aims at preserving that security by restraining or punishing those who violate it.

The State, from the Islamic standpoint, therefore, must neither interfere with the person and property of the individual (except through due process of law) nor permit anybody to invade the liberty of the other by imprisoning him or by stripping him of his property without lawful authority.

The law of Islam and the Muslim Community are interdependent and complementary institutions. The Muslim Community accepts the imposition of the law upon itself not in order to curtail its liberty, but to realise what it believes to be its own beneficial development. Governmental control and authority, from the standpoint of Islam, therefore, must be used for the beneficial development of the Community as a whole; and the State must constantly endeavour to secure the reconciliation of the liberty of the individual with the authority of the Government in such a way that the freedom of the individual is preserved and at the same time a good standard of life for all the citizens is maintained.

Since in modern societies virtue is left to be enforced by educational or corrective institutions, the influence of public opinion or the free wisdom of Man's will, it is not the function of law to impose morality. Modern legislatures, therefore, confine themselves to expressing only civil obliga-

tions and the punishment instituted against criminal offences.

The State, from the standpoint of Islam, should enforce the rule of law. It must not deprive any individual of his life, liberty or property without notice and an opportunity of being heard. The God of Islam has made human life sacred, and Islam regards private ownership as a trust. God says in the Quran: "And that ye slay not the life when God hath made it sacred, save in the course of justice."¹ He also says: "And eat not up your property among yourselves in vanity, nor seek by it to gain the hearing of the judges that ye may knowingly devour a portion of the property of others wrongfully."² In his last sermon, the Prophet is reported to have said: "Your lives and property are sacred and inviolable one to another until you appear before your Lord."

Thus the security of the person and the property of the individual has been guaranteed to the individual under the Law of God. The State, from the standpoint of Islam, therefore, must guarantee to all citizens their fundamental rights. It should guarantee the equality of all citizens before law, and provide equal protection of law to everybody. No person should be deprived of life or liberty except in accordance with law, and no person should be punished for an act which was not punishable by law, nor should any person be subject-

ed to a punishment greater than that fixed by law for an offence. No person should be detained in custody without notice of the grounds for his arrest, nor should any person be denied the right to consult or be defended by a legal practitioner of his choice. Similarly no person should be deprived of his property except in accordance with law, and no property should be requisitioned or taken possession of except by the authority of law which provides for compensation thereof.

It has already been pointed out that *equality* and *freedom* are two of the basic ingredients of *Tauhid* (unity of God), and that the idea of the State, from the standpoint of Islam, implies a constant endeavour to realise these ideals in a definite human organisation. *Equality* and *freedom* are the sacred rights of Man, guaranteed to him under the Law of God. The State, therefore, must guarantee to all citizens equality before law, as well as equality of status and opportunity. No person should be permitted to practice untouchability, and no person should be held in slavery. There should be no discrimination in respect of the right of the individual to access to public places, and similarly the right of the individual should be safeguarded against discrimination in services.

It has been noted that Man is created free. God says in the Quran: "It is He who has made the earth manageable for you, so travel ye through its

tracts and enjoy of the sustenance which He furnishes; but unto Him is the Resurrection."³ The State, from the standpoint of Islam, therefore, must guarantee everybody the right to pursue happiness, to freedom of speech and expression, subject to any reasonable restrictions imposed by law in the interest of the Community as a whole and the security of the country. Subject to any reasonable restrictions imposed by law in the public interest, every citizen should be guaranteed the right of freedom of assembly and association, of freedom of movement, of trade, business and profession, and the right to hold and dispose of property.

God says in the Quran: "If God had not raised a group to ward off the others from aggression, churches, synagogues, oratories, and mosques where God is worshipped most, would have been destroyed."⁴ The State, from the standpoint of Islam, therefore, must offer equal protection and security to all the religions in the country because the God of Islam enjoins not only tolerance of all the religions other than Islam but the Muslims are obliged even to defend the places of worship of the non-Muslims under their protection.

There are numerous instances in Islamic history of Muslim tolerance and of the Muslims defending the places of worship of the non-Muslims. The Prophet himself has set before us an illuminating example. Once a deputation of Christians

waited upon him, and while he was in conversation with them in his own mosque at Medinah, the time for the Christian prayer approached. Accordingly the Christians brought this fact to the notice of the Prophet and proposed to move out of the mosque; but the Prophet asked them: "Why don't you pray here?" They replied: "Our prayer is accompanied with instrumental music and it may be disapproved of, if so conducted in the mosque." The Prophet said: "Pray as you like in your own way," and so the Christians held their service in their own way in the mosque of the Prophet. Such was his tolerance.

When Umar, the second Caliph, visited Jerusalem (Palestine), he called on the Bishop of the Church of the Holy Sepulchre, and while he was talking to him, the time for prayer intervened. Umar said to the Bishop: "Forgive me for it is my prayer-time and therefore I must go out and offer prayers." The Bishop said to him: "You could pray here instead of going out for this is also a house of prayer." Umar replied: "You are right and we can pray anywhere on God's earth but my praying here is fraught with the danger lest the Muslims in my life-time or after claim a right to convert this church into a mosque on the grounds that I have prayed in it." Thereupon Umar went out and offered prayers on the steps of the Church of the Holy Sepulchre.

These examples indicate that Islam not only preaches but also demonstrates by practice that it stands for the complete liberty of all creeds. The State, from the standpoint of Islam, therefore, must guarantee every citizen the right to profess, practise and propagate his religion subject to law, public order and morality; it should guarantee every religious sect the right to establish, maintain and manage its religious and educational institutions.

No person should be forced to pay any special tax the proceeds of which are to be spent on the propagation or maintenance of any religion other than his own. No person should be denied admission to any educational institution on the ground of race, religion or caste. No person attending any educational institution should be required to receive religious instruction if such instruction relates to a religion other than his own. Any group of citizens having a distinct language, script or culture should have the right to preserve the same.

The State must not make any law the effect of which is to curtail, take away or abridge the fundamental rights guaranteed to all the citizens. All laws inconsistent with or in derogation of the fundamental rights must be declared null and void. The State must guarantee all citizens the right to remedies, e.g., the right to move the Supreme Court by appropriate proceedings, for the

enforcement of their fundamental rights, and the Supreme Court must be authorised to issue to any person, authority or Government, directions, orders, or writs for the enforcement of any of the fundamental rights.

It is only through guaranteeing the enforcement of the fundamental rights of each and every citizen that the Muslim Community shall be enabled to retain the vision of a more perfect State, which it can endeavour to reach under the guidance of the Law of God. The adoption of the symbols of *the Crescent* and *the Star* on the national flag represents this very aspiration of the Muslim Community i.e., the State to achieve gradually (just as the Crescent moon passing through its numerous phases, eventually achieves) perfection under the guidance of God's Law (symbolised on the national flag as the Guiding Star).

Chapter 4

THE REALISATION OF THE IDEAL OF 'SOLIDARITY'

Pakistan came into being primarily because the Muslims of the Indian sub-continent regarded themselves as a distinct nation. Since the establishment of Pakistan, however, the geographical non-contiguity of the country, on the one hand, and the existence of provincialism, sectarianism and tribalism on the other, have set barriers to the growth and evolution of a single nationhood. Quaid-i-Azam was aware that the people of the two wings of Pakistan did not descend from the same racial stock. They spoke different languages, and possessed different historical and cultural backgrounds. He was conscious that they could be welded into a unified whole only through the spiritual bond i.e., the adherence to the faith of Islam which they shared in common.

In one of his addresses to the Muslims, Quaid-i-Azam rightly pointed out: "As long as you do not throw off this poison (provincialism) in our body politic, you will never be able to weld yourself into a real true nation....Islam has taught us this,

and I think you will agree with me that whatever else you may be and whatever you are, you are a Muslim. You belong to a nation now; you have now carved out a territory, a vast territory, it is all yours; it does not belong to a Punjabi or a Sindhi or a Pathan or a Bengali, it is yours."¹

Anyway, the important question is: For how long is the ideal of a spiritual unity going to endure when it has to face the obstinate material forces let loose by the geographical non-contiguity of the country and the rising economic discontent everywhere; and when steps are yet to be taken in the field of education through the adoption of a uniform system of instruction and the changing of the old syllabus to weld, mould and galvanise the people of Pakistan into a real true nation?

A penetrating glance at the conditions prevalent in Pakistan reveals that actually the growth of provincialism is being stimulated by economic forces, though racial and cultural factors may also be involved. The province of East Pakistan, for instance, contains more than half the population of Pakistan, and its inhabitants are more homogeneous than the inhabitants of the province of West Pakistan. (It is a single unit, its inhabitants descend from the same racial stock and speak the same language). West Pakistan, however, originally contained four units (the Punjab, North West Frontier Province, Sind, and Baluchistan) but

under the Establishment of West Pakistan Act, 1955, the provinces and states were integrated into one unit called the province of West Pakistan.

Although the establishment of West Pakistan as a single unit was motivated by economic considerations for the benefit of all the integrating provinces and states, it also amounted to taking a practical measure for the realisation of the ideal of *solidarity* among the inhabitants, at least of West Pakistan, who are unfortunately, not as homogeneous as the inhabitants of East Pakistan. (The inhabitants of West Pakistan descend from different racial stock and speak different languages).

At any rate, there was nothing novel in the amalgamation of the provinces and states of West Pakistan into a single unit for it was an old project recommended by numerous viceroys and administrators of the former British India. The Punjab and the North West Frontier Province in fact formed a single province until 1901; and if the occupation of Sind by the British (in 1843) had followed and not preceded the occupation of the Punjab (in 1849), Sind would have certainly been incorporated in the Punjab instead of Bombay Presidency, because the two provinces (the Punjab and Sind) were contiguous and connected by the natural tie of a single river and its tributaries.

Iqbal was probably aware of this old project, for when he first expressed the desire (in 1930)

for creating a Muslim state in the Indian sub-continent, he used the following words: "I would like to see the Punjab, North West Frontier Province, Sind and Baluchistan *amalgamated into a single state*. Self-government within the British Empire, or without the British Empire, the formation of a *consolidated* North West Indian Muslim state appears to me to be the final destiny of the Muslims at least of North West India." ²

Thus to realise the ideal of *solidarity* among the people, which is, as has already been pointed out, one of the important ingredients of *Tauhid* (the unity of God), it is necessary to retain West Pakistan as a single unit, and at the same time to establish closer relationship between East and West Pakistan through the development of trade, commerce, industry and agriculture. In order to weld the people into a unified whole, it is extremely essential to solve the economic problem of Pakistan, for unity and solidarity cannot be achieved in actuality unless and until there is prosperity in the country. In this connection the acceptance of social democracy in some suitable form (i.e., consistent with the legal principles of Islam) would lead to the solution of very many of our problems. The acceptance of such social democracy, in the opinion of Iqbal, would not be "a revolution but a return to the original purity of Islam."³

Although Islam is a binding force, there are plenty of other factors to drive the people of Pak-

istan apart from one another. The geographical non-contiguity of Pakistan is itself an obstinate barrier which has been imposed upon the people by the unusual layout of the country, and which cannot be surmounted unless the two halves of Pakistan can find a sustained common interest in supporting a central head. However, it is only together that East and West Pakistan can form a bigger and more viable economic unit and a more effective international force than either can be alone. It is, therefore, necessary for the State to adopt a suitable economic policy supported by some suitable form of social democracy to bind the people of Pakistan together.

The greatest danger to the realisation of the ideal of *solidarity* among the people of Pakistan would be the development of an acquisitive economy based on the model of modern Western capitalism. In the words of Iqbal: "The people of Asia are bound to rise against that acquisitive economy which the West has developed and imposed on the nations of the East. Asia cannot comprehend modern Western capitalism with its undisciplined individualism. The faith (Islam) . . . recognizes the worth of the individual, and disciplines him to give away his all to the service of God and man. It can still create a new world where the social rank of man is not determined by his caste or colour, or the amount of dividend he

earns, but the kind of life he lives; where the poor tax the rich; where human society is founded, not on the equality of stomachs but on the equality of spirits; where an untouchable can marry the daughter of a king; where private ownership is a trust, and where capital cannot be allowed to accumulate so as to dominate the real producer of wealth." 4

Another solution of the problem ought to be found through the means of modern education which is indeed absolutely vital for the industrial and economic development of the country. Modern education should also be utilised for realising the ideal of *solidarity* among the people of Pakistan.

Syed Ahmad Khan was the first Muslim in the Indian sub-continent to catch a glimpse of the positive character of the age which was to follow him. He felt the need of a fresh orientation of Islam and worked for it through the dissemination of, what may be termed, modern education among the Muslims. His sensitive soul realised perfectly that although the Muslims retained the discipline of Islam, the will which that discipline was intended to fortify had been completely destroyed. His attempt to interpret the religion of Islam scientifically was misunderstood mainly because the extreme conservatism of the Muslims of the Indian sub-continent had made them lose their hold on the realities of life and consequently they failed to

grasp the real meaning of the religious attitude of Syed Ahmad Khan.

Iqbal like Syed Ahmad Khan was fully aware of the short-comings of the Muslims. In the matter of reconstructing the Muslim society, his attitude, however, was bolder than that of Syed Ahmad Khan. "During the last five hundred years", he observed, "religious thought in Islam has been practically stationary. There was a time when European thought received inspiration from the world of Islam. The most remarkable phenomenon of modern history, however, is the enormous rapidity with which the world of Islam is spiritually moving towards the West. There is nothing wrong in this movement for European culture, on its intellectual side, is only a further development of some of the most important phases of the culture of Islam. Our only fear is that the dazzling exterior of European culture may arrest our movement and we may fail to reach the true inwardness of that culture. During all the centuries of our intellectual stupor Europe has been seriously thinking on the great problems in which the philosophers and scientists of Islam were so keenly interested. Since the Middle Ages, when the schools of Muslim theology were completed, infinite advance has taken place in the domain of human thought and experience. The extension of man's power over nature has given him a new faith and a fresh sense of superiority over the forces that constitute his environment. New points of view have been sug-

gested, old problems have been restated in the light of fresh experience, and new problems have arisen.... No wonder that the younger generation of Islam in Asia and Africa demand a fresh orientation of their faith. With the re-awakening of Islam, therefore, it is necessary to examine, in an independent spirit, what Europe has thought and how far the conclusions reached by her can help us in the revision and, if necessary, reconstruction of theological thought in Islam. Besides this, it is not possible to ignore the generally anti-religious and especially anti-Islamic propaganda in Central Asia which has already crossed the Indian frontier Surely, it is high time to look to the essentials of Islam The Quran opens our eyes to the great fact of change, through the appreciation and control of which alone it is possible to build up a durable civilization. The cultures of Asia and, in fact, of the whole ancient world, failed, because they approached Reality exclusively from within and moved from within outwards. This procedure gave them theory without power, and on mere theory no durable civilization can be based.... The task before the modern Muslim is, therefore, immense. He has to rethink the whole system of Islam without completely breaking with the past The only course open to us is to approach modern knowledge with a respectful but independent attitude and to appreciate the teachings of

Islam in the light of that knowledge, even though we may be led to differ from those who have gone before us."⁵

The liberalism of Syed Ahmad Khan and Iqbal resulted from the realisation that modernity was an existential fact just as the teaching of Islam that the realities of life are to be faced and not avoided was a fact. It is mainly for this reason that Iqbal felt the necessity of reviving *Ijtihad* which he regarded as the principle of movement in the structure of Islam, and equipped us with the philosophy of what he called: *Permanence-in-change*.

Iqbal longed for the emergence of new *Ulema* from among the modern Muslims who should approach modernism with an attitude of moderation instead of hostility, and who, with a full knowledge of their own tradition at their disposal, should be able to look forward to the future. "Spiritually we are living in a prison-house of thoughts and emotions which during the course of centuries we have weaved around ourselves.... Islam requires emancipation from the mediaeval fancies of theologians and legists," he proclaimed.⁶

In order to emancipate Islam from mediaevalism, it is necessary to rear self-concentrated individuals rather than to emphasise on over-organisation founded on the blind following (*Taqlid*) of the past authorities. Iqbal made it perfectly clear that "the ultimate fate of a people does not depend

so much on organization as on the worth and power of individual men. In an over-organized society the individual is altogether crushed out of existence. He gains the whole wealth of social thought around him and loses his own soul. Thus a false reverence for past history and its artificial resurrection constitute no remedy for a people's decay. 'The verdict of history' as a modern writer has happily put it, 'is that worn out ideas have never risen to power among a people who have worn them out.' The only effective power, therefore, that counter-acts the forces of decay in a people is the rearing of self-concentrated individuals. Such individuals alone reveal the depth of life. They disclose new standards in the light of which we begin to see that our environment is not wholly inviolable and requires a revision. The tendency to over-organization by a false reverence of the past as manifested in the legists of Islam in the thirteenth century and later, was contrary to the inner impulse of Islam."⁷

It is rather unfortunate that the liberalism and moderation of Syed Ahmad Khan and Iqbal have not yet been disseminated among us. Emotionally we are divided into two groups. A large majority among us, owing to the prevalent illiteracy, stupidity and credulousness hold very conservative views, and are not prepared to accept change in any form. On the other hand, the

secular nature of our education has evolved a completely nihilist group among us, who are not only disconnected from our past but who also regard our religion, our culture and our historical traditions as absolutely worthless.

It has been noted that Pakistan was established in order that the Muslims of the Indian sub-continent could develop themselves on the lines of their own distinctive culture. The Objectives Resolution, 1949, embodied this aspiration of the Muslims when it declared that the Muslims of Pakistan would be enabled individually and collectively to order their lives in accordance with the teachings and requirements of Islam as set forth in the Quran and Sunnah. The questions may be asked: During the past ten years has our political leadership taken any steps to bring up the rising generation of the Muslims of Pakistan according to the principle stated above? Did they feel the necessity of reforming our educational institutions in the light of the principle stated above? Or did they ever think in terms of changing the method of instruction or replacing the old syllabus by a new one which could meet the requirements of Islam?

The study of history reveals that when by the force or the power of a new ideal a new nation is born, it is always a group of idealists or dreamers with a practical vision and an exemplary character who rear and mould such a nation in the early

stages of its development. These personalities endeavour, at the very early stages of a nation's development, to give a practical shape to the ideals and aspirations which led to the founding of the nation. Such founders of nations usually believe that the development of the nation will guarantee that its ideology will be kept eternally alive in the minds of the people. And indeed the ideology of no nation can survive eternally unless and until practical measures are adopted to rear up the younger generation in accordance with the requirements of the foundational ideology of the nation.

Up to the time of the establishment of Pakistan, we did produce personalities who had the complete confidence of the people. But afterwards, however, particularly since the death of Quaid-i-Azam, although we have produced political leadership of a mediocre calibre, we failed to produce political leaders of the calibre of Quaid-i-Azam, or idealists and dreamers of the calibre of Iqbal. Consequently no means were adopted to inculcate the ideology of Pakistan in the present and future generations. The need of reforming our educational institutions was not felt, and similarly nobody cared to think in terms of changing the present method of instruction or replacing the old syllabus by a new one which could meet the requirements of Islam.

For realising the ideal of *solidarity*, it is extremely essential to disseminate among the people

the foundational principles which lie behind the idea of Pakistan and to acquaint the present and the future generations with these principles in order that the ideology may be preserved. It is, therefore, necessary to reform our educational institutions, to change the present method of instruction and to replace the old syllabus by a new one. At the same time, steps should be taken to implement a scheme of mass education with special and particular emphasis on the ideology of Pakistan.

The object of education should not only be to make good citizens out of the people, or to equip them with the necessary technical, mechanical or other qualifications with which they could secure jobs or utilise their knowledge, skill and ability for the benefit of the community as a whole, but also to produce leaders possessing 'a keen perception of the spirit and destiny of Islam, along with an equally keen perception of the trend of modern history.'

The Muslims of the Indian sub-continent have been rather unfortunate, particularly because of the lack of great leaders. It is rarely that they produce outstanding personalities which could be the driving force behind the people. The confused and chaotic political scene in Pakistan that followed the death of Quaid-i-Azam and that has prevailed ever since was very similar to the one about which Iqbal made the following remarks in 1932:

"And be it further said to the shame of us men of the older generation, that we have failed to equip younger generation for the economic, political and even religious crises that the present age is likely to bring. The whole community needs a complete overhauling of its present mentality in order that it may again become capable of feeling the urge of fresh desires and ideals. The Muslim has long ceased to explore the depths of his inner self. . . . There is yet a sort of chaos in the political thought of those who are supposed to guide the activities of the Muslims in the present day political struggles."⁸

Iqbal believes that great leaders are God's gift and cannot be made to order. But this view is not altogether correct. If the Community is provided with the facilities of a proper education, it can still produce personalities with an insight into the shape of things to come. The educational institutions like Eton and Harrow, whatever their worth from a socialistic standpoint, were certainly capable of producing outstanding political leaders in nineteenth century England.

What steps, then, should be taken in the field of education so that the people of Pakistan may be welded into a unified whole whilst retaining their regional pride, culture, and traditions?

It would not be wrong to say that the creation of Pakistan has raised entirely new problems which

have no precedent in the history of the political thought of the Muslims of the Indian sub-continent. The decision, for instance, to adopt two State languages (Urdu and Bengali) was the solution of one of the problems which had arisen mainly from the geographical non-contiguity of Pakistan. The position at present is this: So far as the acquisition of modern sciences and the relations of Pakistan with other nations of the world are concerned English cannot be discarded for a very long time to come. It was, therefore, a wise move to retain English as the State language of Pakistan for the coming twenty years. But if English is to be retained and if Urdu and Bengali both are also to become the State languages of Pakistan, then, so long as a single script is not adopted, at least for the writing of Urdu and Bengali, the people of Pakistan would be obliged to learn not only three languages but also to master three completely different scripts.

It could be suggested that in order to secure uniformity in the instruction of these languages, Pakistan should adopt the Latin script as the State script. Apparently there is nothing wrong with this suggestion. When the Latin script was adopted as the State script in Turkey, Iqbal did not hesitate to point out that as a society Islam does not require any specific language, script or dress. But whatever the merits or demerits of the adoption

of the Latin script, the important point is that usually languages and the script in which they are written constitute an integral part of the ideology of a people, and it is not easy to decide such issues merely by the force of logic or for the sake of convenience or expediency. The emotions of the people are attached to their ideology and everything that pertains to it. One of the aspects of the Turkish ideology is that it was founded on grievances against the Arabism of that time which had been hostile to the Turks. It was, therefore, easier for the Turks to discard the Arabic script and to adopt another script of their own choice.

If Urdu, for instance, were written in Hindi characters, then there would have been no difficulty in discarding those characters in Pakistan and adopting another script of our liking (mainly because our ideology was based on distinguishing ourselves from Hinduism which had been hostile to us).

Every student of Muslim politics is aware of the fact that on the suppression of Arabic and Persian as the court languages of the Indian sub-continent, the Muslims adopted Urdu (written in Urdu script which is similar to Persian or Arabic script) as their vernacular, and insisted on its retention when the Hindus demanded that Urdu should be replaced by Hindi. Syed Ahmad Khan while emphasising the need for a separate method

of instruction which should preserve the languages of Muslim culture (Arabic and Persian) championed the cause of Urdu which had come to be regarded as the language of Muslim culture.

Maulana Muhammad Ali and the other Khilafat leaders also upheld the cause of Urdu and Urdu script. In fact it would not be wrong to say that the desire of the Muslims to retain Urdu along with its script as their vernacular was an integral part of the Muslim separatist movement, mainly because it supported their claim to be culturally distinct from the other and the larger cultural unit; consequently Muslim India supported the cause of Urdu and its script at every stage of her political development.

On the creation of Pakistan as the home and the State of the *Muslim nation*, it was believed that Urdu written in Urdu script would be given the status of the State language. Quaid-i-Azam proclaimed in 1948: "Let me make it clear to you that the State language of Pakistan is going to be Urdu and no other language.... Without one State language, no nation can remain tied up solidly together and function."⁹

The position has, however, changed considerably since Quaid-i-Azam made this famous speech, because the champions of Bengali insisted on Bengali being given the status of a State language side by side with Urdu. The claim of the cham-

pions of Bengali rested on the grounds that they constituted more than half the population of Pakistan and that therefore, there should be two State languages.

Anyway, the duality of State languages of Pakistan should be overcome by the adoption of a common script. The regional languages of West Pakistan (e.g., Punjabi, Pashtu, Sindhi) are written in the same characters in which Urdu is written. Even Bengali was written in the Persian characters at one time. It would therefore, be advisable to adopt the Persian or Arabic script as the State script provided that the champions of Bengali give their consent to this arrangement. If Bengali and Urdu both were eventually to attain the status of the State languages, the adoption of Persian or Arabic script would go a long way towards unifying the people of the two wings of Pakistan.

It cannot be denied that Arabic and Persian languages have always been regarded as the languages of Islamic culture in the Indian sub-continent. Besides this, if there is any future for any script other than the European scripts (e.g., Latin or Gothic script) it is Arabic or Persian script. The use of Arabic or Persian characters in writing Bengali and Urdu would also affirm the fact that the Muslims of Pakistan constitute a single nation, and thus it would be perfectly in accordance with the ideology of Pakistan. Not many people would

oppose the adoption of the Persian or Arabic script by the State for the purpose of writing Bengali and Urdu, but the adoption of any script other than Arabic or Persian (e.g., Latin script) would lead to resentment and opposition throughout Pakistan (East as well as West).

The next important question that should attract our attention is the matter of making provision for instructing or teaching the Bengali and Urdu languages in the schools of Pakistan as soon as possible.

The syllabus for the primary and the matriculation standards should be selected and framed with great care. In order that the ideology of Pakistan may be preserved among our present and future generations a study of *history, literature and theology* is very essential.

Study of History

God, through the Quran, in the opinion of Iqbal, makes constant appeal to the reason and experience of man and lays emphasis on *Nature* and *History* as sources of human knowledge. It is, in fact, through the study of *Nature* (empirical, technical and mechanical sciences) and *History* that the spirit of Islam actually reveals itself.

From the ideological standpoint, therefore, it is essential that there should be an emphasis on the study of History in our schools. Most of the histories of the Muslim rule in India have been

written or compiled by non-Muslim authors (either Hindus or British) with a spirit of hostility rather than sympathy towards Islam. Such histories consequently misrepresent facts and are distorted. It is, therefore, necessary to rewrite the histories particularly of the Muslim rule in India, so that our children may have a clearer and truer picture of our past.

The histories should be written with due regard to the following:

(a) They must reveal to our younger generations the fundamental principles of *movement* and *change* in the life of the Muslim peoples. The Prophet is reported to have said: "Do not denounce Time for Time is God." This implies that it is the passage of time which determines the worth of the ideologies on which nations are founded. If the ideology of a nation cannot withstand the test of time, it has to undergo a *change* otherwise the nation which is founded on that ideology is bound to perish.

(b) The histories should emphasise the struggles of the Muslim peoples, and should not merely record the achievements of *Sultans* and *Padshahs*.

(c) The histories should indicate that from the establishment of the Muslim rule in the Indian sub-continent (in 711) to the accession of the

Mughal Emperor Babur (in 1526), Muslim India remained constitutionally linked with the rest of the Muslim world through the acknowledgement of the Central Caliphate (first established at Medinah, then at Damascus, then at Baghdad and finally at Cairo). Soon after the power of the Mughals declined and India fell into the hands of the British, the question: How were the Muslims of the Indian sub-continent or those living outside the Ottoman Empire related to the Ottoman Caliphate? occupied the minds of the Muslim jurists.

(d) The histories must enumerate the causes and reasons for the ideological isolation of the Muslims as a Community from the Hindus (e.g., those mentioned by Al-Beruni in his famous *Kitab-al-Hind* written in the ninth century), and the numerous fruitless attempts which were made during the course of centuries to unify the two Communities.

In short the histories must clearly show that the roots of our present ideology, that is to say, our distinction from the Hindus, our desire to develop ourselves along the lines of our own distinctive culture, and our aspiration to bring about a unification of the Muslim world, actually lie in our past.

Study of Literature

The selection of pieces of *Literature* for the primary and matriculation standards should be based on the study of the writings of the authors

associated with the *Aligarh movement*. In the nineteenth century, for the first time in the history of Indian Islam, the poets and writers used their talents for the welfare of the Muslim Community, and laid the foundations of what may be called 'literature for the service of the Community'. It was in fact the ideal formulated by the authors associated with the *Aligarh movement* that found its fullest realisation in the work of Iqbal. The authors connected with the *Aligarh movement plus Iqbal*, therefore, provide the cultural background of the ideology of Pakistan. Pieces of Bengali literature should also be selected with the above object in view.

Study of Theology

The study of *Theology* should be made compulsory for the Muslim children in all the State-run schools, in order that the Muslim children may be enabled to at least go through a selected portion of the Quran and become familiar with the foundational principles of Islam.

A question may be raised here: How would it be possible to introduce the subject of *Theology* (or give instruction in the Quran) in the State-run schools of Pakistan when there exist sectarian differences among the Muslims?

First of all, as far as the sectarian differences among the Muslims are concerned, one basic point must be understood and grasped. It is that all the

sects among the Muslims agree on the foundational principles of Islam. In other words, there is no disagreement among the Muslim sects with regard to the primary essentials of Islam. All the Muslim sects agree upon the structural principles of the Unity of God and the Finality of Muhammad's Prophethood, supplemented by the five well-defined *Obligations of the Faith*. Thus, if there exist differences among the Muslim sects they are merely of interpretation of the law of Islam or of the details of practice.

In the United States, most of the State-run educational institutions are secular purely because the Protestants and the Catholics do not agree on the primary essentials of Christianity. The Protestants (including their sects) and the Catholics may be called Christians in a very general, broad, vague and undefined sense of the term, but among themselves they seem to regard one another as belonging to completely different religious denominations. Protestants appear to think that to be a Catholic does not imply belonging to a different sect of Christianity, but belonging to a different religion—just as a Jew or a Muslim belongs to a different religion.

The case of the Muslim sects, as has already been explained, is altogether different. Their differences are based either on varieties of the interpretation of the law of Islam or minor differ-

ences in the details of practice. These differences are in fact healthy for they provide a vast range in the interpretations of the Law of God to an inquisitive Muslim. A Muslim is free to follow any School of Law or accept the opinions of any sect and still remain fundamentally a Muslim. The Prophet has approved of such sectarian differences among the Muslims for he is reported to have said: "Difference of opinion in my community is (the manifestation of Divine) Mercy".

The second important point that deserves consideration in this connection is that two Muslim sects predominate in Pakistan—the *Sunnis*, following the *Hanafi* School of Law; and the *Shias* (*Ithna Asharia* sect) following the *Imamia* Code of Law. The other Muslim sects constitute only small minorities. They have their own educational institutions which provide facilities for religious instruction of their own persuasion (just as Christian Missionary Schools provide facilities for religious instruction according to their own persuasion).

If the subject of *Theology* is introduced or instruction in the Quran is given in the State-run schools of Pakistan, it would only mean the selection of a course of theology which is approved by both the *Sunnis* and the *Shias*, and this should not be a difficult matter. The Muhammadan Anglo-Oriental College founded by Syed Ahmad Khan at

Aligarh successfully managed to provide religious instruction to the *Sunnis* as well as the *Shias*. This arrangement encouraged the growth of tolerance and fellow-feeling among the students. Indeed non-Muslim students were admitted in the College, though they were exempt from theological instruction. Cow-slaughter was forbidden and beef was not served in the College.

"The study of the Quran" observes Dr. Ghulam Jilani, Head of the Department of Philosophy and Psychology, University of Dacca (East Pakistan) "at early stages of a child's life, though it does not give him knowledge of Islam, does definitely create in him an attitude of reverence for religion which persists throughout later life. In some cases it serves as a strong motive force for acts of bravery and sacrifice in defence of Islam. It is probably such people, whom we sometime do not regard as good Muslims, as have come forward in crucial situations in the history of Islam, to save the Muslims and Islam from complete extinction."¹⁰

It would, therefore, be wise to provide facilities for religious instruction in the State-run schools in order that the ideology of Pakistan may be preserved among the younger generations while they are still at an impressionable age. Religious instruction at an early age would certainly equip and enable our youth to cope with the numerous

exterior ideologies which are opposed to our ideology.

From the ideological standpoint, it is also necessary that highly qualified teachers should be provided particularly up to the primary standard. It is only in the primary standard that the personality and character of a child can really be moulded and shaped. The prevalent dishonesty, cheating and lack of moral scruples in our youth have actually resulted from bad instruction and example at the primary stage, although unhappy homes may also be partly responsible for it.

At present the instruction of religion, wherever it is provided in our educational institutions, is in the hands of lowly-paid and unqualified persons (like the *Imams* in our mosques). They present Islam in such a way that our youth either ridicule it or make a laughing stock of it. The religion of Islam, therefore, could only be respected and be effective if the status of the instructors in religion is raised in the eyes of our children, and this is possible only if the dignity, rank and social status of the teachers of *Theology* (the poor *Maulvi Sahib*) is the equivalent of the other teachers or professors of our Universities.

The standard of teaching particularly of the Urdu, Bengali and English languages should be made uniform in all our educational institutions.

At present some educational institutions in the country pay more attention to the teaching of English language whereas they neglect Urdu and Bengali. Other institutions, however, which lay more emphasis on the teaching of Urdu or Bengali, neglect English. The result is that our youth when admitted to the Universities are either proficient in English without having much knowledge of Urdu or Bengali, or are proficient in Urdu or Bengali, without having any idea of English. This handicaps our students at the university level, and it also leads to a division in our society between the English and the Urdu or Bengali educated groups.

In order to inculcate the ideology of Pakistan in the present and future generations, and to weld the peoples of Pakistan into a unified whole whilst retaining intact their regional pride, culture and traditions, it is necessary to establish the following additional faculties in our Universities.

The Faculties of Bengali and Urdu

The Universities of Pakistan should provide facilities for the study of Bengali and Urdu languages and literature up to the Master's degree. Research in the State languages and their literature should be encouraged, under the supervision of able, skilled and experienced scholars in these languages. The degree of Ph.D in the above languages, should be awarded to the outstand-

ing research scholars. The work of translating Bengali literature into Urdu and *vice versa* should also be taken up by the above faculties.

The Faculty of Regional Languages

In order to preserve the regional languages, culture and traditions of Pakistan, the Universities of Pakistan should provide facilities for the study of Pashtu, Sindhi, Punjabi, Kashmiri and Baluchi languages up to the Master's degree. Research in the regional languages, literature, folk lore, culture and traditions should be encouraged under the supervision of able, skilled and experienced scholars in these languages. The degree of Ph.D. in the above languages, should be awarded to the outstanding research scholars. The work of translating the literature of the regional languages into Bengali and Urdu should be undertaken by the above faculty.

This faculty should also provide facilities to the specialists in the regional languages to carry on archaeological, anthropological, ethnological, architectural and historical researches on the different regions of Pakistan.

The Faculty of Islamic Languages

The facilities are already provided for the study of Arabic and Persian—the languages of Islamic culture. But it would be in accordance with the ideology of Pakistan to provide, through our Universities, facilities for the study of the Turkish and

Indonesian languages. Very little is known about Indonesia in Pakistan, although her Muslim population is almost equal in number to that of Pakistan. There is a likelihood, as Professor Smith remarks, that the modern renaissance in Islam may shift the centre of gravity of the Muslim world from the shores of the Mediterranean to those of the Indian Ocean.¹¹ It is, therefore, necessary that we should take a keen interest in the establishment, growth, development and progress of Islam in Indonesia.

The Faculty of Theology

In order to preserve the ideology of Pakistan and to weld the people into a unified whole it is most essential to introduce the Faculty of Theology in all the Universities of Pakistan. The students in the F.A. and B.A. classes who have taken up Arabic as a subject should be permitted to take up Islamic Theology. A person should only qualify as a graduate in Islamic Theology if he has studied the whole of the Quran, *Tradition*, History of the Muslim sects and the Schools of Law, has a full knowledge of the ritual and practice of Islam, a study of comparative religions (particularly those which prevail in Pakistan), a study of the sociology and psychology of religion, a critical study of the ancient and modern history of the Muslim world (with special reference to the history of the Muslims in the Indian sub-continent), and some idea of modern philosophy and economics. The stand-

ard of the Master's degree in Theology, therefore, should be high enough to include all the above mentioned subjects, so that the specialists in this subject may be enabled to carry on advanced studies in Islamic theology, jurisprudence, philosophy, ethics, economics, politics, history, literature etc.

Only the graduates in Islamic Theology should be eligible for the appointment of the *Imams* for all the mosques of Pakistan, and should also be eligible as teachers in the schools and Universities of Pakistan.

The Faculty of Comparative Religions

The Universities of Pakistan should provide facilities for the study of Comparative Religions (including those Faiths which prevail in Pakistan) up to the Master's degree. Research facilities should also be provided in the above subject. Since the study of Hebrew, Greek, Latin, Sanskrit and perhaps other languages is required for advanced studies in the above subject, facilities should be provided for the study of these languages in due course.

The study of this subject would not only broaden the outlook of the Muslims, but would enable them to understand better the meaning of their own religion in terms of the religious history of the rest of the world, and would also encourage a spirit of tolerance, love and understanding among

the peoples professing different Faiths in Pakistan. Besides this, it is an integral part of our ideology to preserve, protect and defend the Faiths of those citizens of Pakistan who profess religions other than Islam.

The Establishment of Islamic Research Centres

Last of all, in order to realise the ideal of *solidarity* among the people and to preserve the ideology of Pakistan, it is necessary that the State should establish two Islamic Research Centres preferably at Lahore and Dacca, the oldest seats of learning in Pakistan.

It has already been noted that under Article 197 of the 1956 Constitution, the President was obliged to set up an organisation for Islamic research and instruction in advanced studies to assist in the reconstruction of Muslim society on a truly Islamic basis. But nothing substantial was achieved in this connection. If at all a few organisations for Islamic research were established, the only persons who benefitted much from them were a group of intellectuals who were more skilled in the art of flattering the *delinquent* politicians than in genuine scholarship.

Since these so-called organisations for Islamic research were not affiliated with our Universities, our students could not get a chance to avail of their facilities in order to develop their capacity for

creative and constructive research. Consequently the object of reconstructing the Muslim society on a truly Islamic basis through these organisations was never achieved.

In each and every country of the world where there exists a genuine desire for advanced studies and a genuine thirst for knowledge, research centres and organisations always appear to be affiliated with the Universities (or seats of learning). If they do exist independently or outside of the Universities, then usually the object behind them is *political* rather than scholarly.

Thus for the purpose of reconstructing Muslim society in this country on a truly Islamic basis, it is very essential that all the existing so-called Islamic research organisations and Iqbal Academies should be amalgamated into two Islamic Research Centres and affiliated with the Universities of the Panjab and Dacca. These centres should contain as integral parts huge libraries which should include all the books on Islam, old as well as new, written in each and every language of the world. The current weekly, monthly or other periodicals on Islam which are printed and published in the Muslim as well as non-Muslim countries of the world, should be available at these libraries.

In order to guide and supervise the work of our research scholars, a few enlightened, liberal-minded and experienced professors should be im-

ported. Such professors should not only specialise in classical Islamic theology, jurisprudence and history of Islamic culture, but they should also possess a keen insight into the trends of modern history and the requirements of modern times. The Centres should provide facilities to our research scholars to continue their advanced studies, in their respective fields, abroad e.g., at the Universities of Afghanistan, Iran, Turkey, Egypt, Indonesia, India, Germany, France, England, Canada, United States, and if possible also China and the southern Muslim republics of the U.S.S.R.

It is only through the establishment of these Centres on the lines suggested above that it would be possible to reconstruct Muslim thought, to rejuvenate Islamic culture and to build up and unify Muslim society in this country on a truly Islamic basis. Islam lies mid-way between Europe and S.E. Asia and since it is a synthesis of the Eastern and Western outlooks on life, there is no reason why it should not act as a kind of intermediary between the East and the West.

Chapter 5

THE IDEAL CITIZEN

Legally speaking, the Pakistan Citizenship Act, 1951, enumerates the circumstances and conditions under which a person could be regarded as a citizen of Pakistan. The ideal citizen of Pakistan, however, is the *Momin* i.e., any person who truly, sincerely, honestly and steadfastly believes in the God of Islam and everything which He enjoins.

In order to grasp the qualities or attributes which constitute a *Momin*, it is first of all necessary to approach and evaluate Islamic history critically.

Every student of the history of Islam is aware of the fact that the warring tribes of the Arabian peninsula were unified into one people by the Arabian Prophet under the ideology of Islam, and United Islam set out from Arabia to conquer its adversary 'Paganism'. The greater part of what now constitutes the Muslim world fell into the hands of the Muslims shortly after the death of the Prophet.

THE IDEAL CITIZEN

The rapid annexation of vast territories into *Dar-al-Islam* (the abode of Peace) brought prosperity, and prosperity reawakened the Arab tribal lust for the political leadership of Islam. Within a decade or so after the death of the Prophet, Islam had not only been divided into three religious-political divisions (the *Shias*, the *Khwaraj* and the *Sunnis*) but stood on the verge of civil war. The republic was replaced by a hereditary monarchy, and the centuries that followed witnessed the development of a kind of despotism which had no sanction in Islam.

The individual lost all significance and the Community came to be identified with this or that sect. Meanwhile the length of the sword decided the issue of the ownership of this or that portion of the Muslim world, and consequently empires rose and fell on Islam's own blood. Century after century history repeated itself, and there was no end to the hunger for the acquisition of territory, until Islam became thoroughly and completely exhausted. It became devoid of all vitality, and ceased to be an active religious-political force.

Allah, the original God of Islam, as revealed in the Quran, was an alive, vigorous, virile, violent and righteous personality. He was the God of the brave, proud, just, yet simple and straight-forward people. *Allah*, therefore, was the God of a strong

race whose strength reflected the strength of their God.

The question: What is a *Momin*? never arose in the early phase of Islamic history because any and every person who believed in the Unity of God and the Finality of Muhammad's Prophethood, who felt that the Quran was revealed to him just as it was revealed to the Prophet, who fortified his will by imposing upon himself the discipline of Islam, and who realised in actuality the ideals of *equality, solidarity and freedom* by doing that which was permitted under the Law of God—was a *Momin*. He had surrendered himself completely and entirely to the God of Islam and therefore, his will was the Will and his hand was the Hand of the God of Islam. He believed in himself and his God and therefore he conquered and was successful.

Within a couple of centuries after the advent of Islam when decadence had resulted from the tribal and racial jealousies of numerous people who came within the fold of Islam, and when Greek and Persian thought had started exerting its influence on the minds of the Muslim theologians and mystics, all the conditions of exalted life were withdrawn from the idea of the personality of the God of Islam, and everything strong, brave, domineering, proud and dynamic was taken away. The living and creative God of Islam was transformed into a static pantheistic God and was made to hold an

absolute position in a fixed universe. He was reduced merely to an *Ideal*, an *Abstraction*, or was called a *Substance*, a *Pure Spirit*, a *Divine Principle*. He was God no more but had been changed into a dead and lifeless thing.

The Muslim mystics of the later phases of Islamic history, contrary to the original teachings of Islam, renounced the world of matter as profane and devoted themselves entirely to spiritualism. The Muslim theologians of this period, on the other hand, slavishly surrendering their ego to the dictates of the past authorities, closed the *Gates of Ijtihad* (independent inquiry) and thus made the entire religious thought in Islam practically stationary. As a result, although the discipline of Islam was formally retained by some, the will which that discipline was intended to fortify had been completely destroyed. The true *Momin* made an exit from the scene leaving behind the abstract and unrealisable, exclusively moral and spiritual ideal of the *Perfect Man* (*Insan-i-Kamil*) of the later mystics of Islam. This mystic ideal destroyed the original concept of *Momin* as a person concerned to act in the world.

The God of Islam and *Momin* are interdependent and complementary forces. If the idea of God is reduced to merely an Omnipotent Will which inculcates fatalism and encourages renunciation, then naturally the *Momin*—the strong,

courageous and powerful man who loved purity, privation, freedom, adventure, hardship and toughness and who lived dangerously would cease to be the ideal of humanity. Thus the God of Islam as represented by the spineless mysticism of the later phases of Islamic history and by the slaves of the dictates of past authorities (*Muqqallidun*) was a product of and had been manufactured by a decayed people whose character was reflected in the God of their creation.

"What would be the use" says Nietzsche, "of a God to whom anger, revenge, envy, sarcasm, cunning, violence were unknown?.... One would not understand such a deity; why should one have him? But when a race decays, when it feels its belief in the future, its hope of liberty finally vanishing; when submission appears to it as the most useful policy, and the virtues of the slave present themselves to the conscience of its members as a condition of existence, then must also the idea of God change. The God becomes nervous, fearful, humble, recommends the 'peace of mind', preaches against hatred, recommends cautiousness and 'love' both of friend and foe; he is perpetually moralising, he becomes everybody's God, becomes a private gentleman, becomes a cosmopolitan."¹

In the opinion of the early mystics (when mysticism was a real force of spiritual education), theologians, and legists of Islam, *Momin* represent-

ed an evolutionary stage of Man's progress from 'paganism' to 'belief' in the Unity of God (*Muslim*) and from 'belief' to 'true and sincere belief' (*Momin*). In other words, the *Momin* emerges from the *Muslim* as the *Muslim* grows in the intensity of his truthfulness, sincerity, honesty and steadfastness of 'belief' in and love for the God of Islam.

In the Quran, the use of the terms *Muslim* and *Momin* also denotes a variation in the degree of intensity in the love of God. For instance, God says in the Quran: "Successful indeed are the believers (*Mu'minun*) who are humble in their prayers, and who shun vain conversation, and who are payers of the poor-tax (*Zakat*) and who guard their modesty....and who are shepherds of their pledge and their covenant, and who pay heed to their prayers. They are the heirs who will inherit Paradise."²

The *Momin*, in the eyes of God, is (a) righteous, sincere, and God-fearing; (b) he is modest, pure, and a man of manners; (c) he is straightforward; (d) just; (e) steadfast; (f) affectionate towards his parents, children and orphans; (g) he abhors slander and (h) backbiting; (i) he is courteous and even careful of small kindnesses; (j) he helps God, and (k) belongs to God's party; (l) he does not simply 'believe' but genuinely and sincerely 'submits' to God and His Prophet; (m) he is

God's soldier and fights only for God's sake. These are some of the attributes of the *Momin* as the following verses of the Quran (also supported by the *Tradition*) would indicate:—

(a) "It is not righteousness that ye turn your faces to the East and the West; but righteous is he who believes in Allah and the Last Day and the angels and the Scripture and the Prophets; and giveth his wealth for love of Him, to kinsfolk and to orphans and the needy and the wayfarer and those who ask, and to set slaves free; and observeth proper worship and payeth the poor due. And those who keep their treaty when they make one, and the patient in tribulation and adversity and time of stress. Such are they who are sincere. Such are the God-fearing."³

(b) "Tell the believing men to lower their gaze and be modest. That is purer for them. Lo! Allah is aware of what they do."⁴

"O ye who believe! Enter not houses other than your own without first announcing your presence and invoking peace upon the folk thereof. That is better for you, that ye may be heedful. And if you find no one therein, still enter not until permission hath been given; and if it be said unto you: Go away again, then go away, for it is purer for you. Allah knoweth what ye do."⁵

(c) "O ye who believe! Guard your duty to Allah, and speak words straight to the point."⁶

(d) "O ye who believe! Be steadfast witnesses for Allah in equity, and let not hatred of any people seduce you that ye deal not justly. Deal justly, that is nearer to your duty. Observe your duty to Allah. Lo! Allah is informed of what ye do."⁷

"And if two parties of believers fall to fighting, then make peace between them. And if one party of them doeth wrong to the other, fight ye that which doeth wrong till it return unto the ordinance of Allah; then, if he return, make peace between them justly, and act equitably. Lo! Allah loveth the equitable. The believers are naught else than brothers. Therefore, make peace between your brethren and observe your duty to Allah that haply you may obtain mercy."⁸

(e) "O ye who believe! Shun much suspicion, for Lo! some suspicion is a crime."⁹

"The (true) believers are those only who believe in Allah and His messenger and afterward doubt not, but strive with wealth and their lives for the cause of Allah. Such are the sincere."¹⁰

(f) "And that ye do good to parents, and that ye slay not your children because of penury—we provide for you and for them. And approach not the wealth of the orphan save with that which is better, till he reach maturity."¹¹

"Thy Lord hath decreed, that ye worship none save Him, and (that ye show) kindness to parents. If one of them or both of them attain old age with

thee, say not 'Fie' unto them nor repulse them, but speak unto them a gracious word. And lower unto them the wing of submission through mercy, and say: My Lord! Have mercy on them both as they did care for me when I was little."¹²

(g) "And those who malign believing men and believing women undeservedly, they bear the guilt of slander and manifest sin."¹³

(h) "Neither defame one another, nor insult one another by nicknames. Bad is the name of lewdness after faith."¹⁴

"And spy not, neither back-bite one another. Would one of you love to eat the flesh of his dead brother? Ye abhor that (so abhor the other)! And keep your duty to Allah. Lo Allah is Relenting, Merciful."¹⁵

(i) "Ah, woe unto worshippers who are heedless of their prayers; who would be seen (at worship) yet refuse small kindnesses."¹⁶

(j) "O ye who believe! If ye help Allah, He will help you and will make your foot-hold firm."¹⁷

(k) "He hath written faith upon their hearts and hath strengthened them with a Spirit from Him, and He will bring them into Gardens underneath which rivers flow, wherein they will abide. Allah is well pleased with them, and they are well pleased with Him. They are Allah's party. Lo! is it not Allah's party who are the successful?"¹⁸

(l) "The wandering Arabs say: We believe. Say (unto them O Muhammad): Ye believe not, but rather say 'We submit', for the faith hath not yet entered into your hearts. Yet, if ye obey Allah and His messenger, He will not withhold from you ought of (the reward of) your deeds. Lo! Allah is forgiving, Merciful."¹⁹

(m) "Fight in the way of Allah against those who fight against you, but begin not hostilities. Lo! Allah loveth not aggressors."²⁰

"Relent not in pursuit of the enemy. If ye are suffering, lo! they suffer even as ye suffer and ye hope from Allah that for which they cannot hope."²¹

"Whoso fighteth in the way of Allah, be he slain or be he victorious, on him We shall bestow a vast reward."²²

If *Momin* represents the evolutionary stage which a *Muslim* is to achieve eventually, the question may well be asked: What is the definition of a *Muslim*? Or what are the minimum requirements for being a *Muslim*?

One point must be made clear before answering this question, and that is that everything which pertains to belief and conviction falls in the realm of feeling and emotions, and therefore, cannot be defined in concrete terms of logical reasoning. Could Love, Pain, Beauty, Mind, Life, Con-

science, Poetry etc. be defined in concrete and categorical terms? No. Even God if approached with the instruments of logical reasoning would always appear to escape definition.

Thus the terms *Muslim*, *Christian*, *Hindu* etc. when defined in terms of logical reasoning would always appear to run short of what they actually imply. In order to grasp the definition of *Muslim*, therefore, it is necessary to approach the question with the help of sources of knowledge other than Reason. Indeed if a person were to deny any other source of knowledge than Reason, then the answer to our question would be completely confused, distorted and misleading. A person relying on instinct, intuition and feeling as sources of knowledge in addition to reason is certainly better equipped to grasp and comprehend the definitions which are never adequate to express fully the reality of the term defined. To define is to limit or to categorise. Since the term *Muslim* if defined would overflow its limitations and categorisation, it could only be defined partially.

The minimum requirement for being a *Muslim*, which is shared in common by all the eminent Muslim legists who hold divergent views with regard to the details of the subject, is that any person who believes in the Unity of God and the Prophetic mission of Muhammad is a *Muslim*. This view is simple and logical and has also been

accepted by Ameer Ali, one of the eminent judges of Muslim India.

At any rate, this definition, although simple and logical, is only partial, because the one who believes in the Unity of God and the Prophetic mission of Muhammad must also believe automatically in what has been revealed by God (i.e., the Quran), the Day of Judgement, the Prophets etc. Then again if one believes in the structural principles of Islam (i.e., the Unity of God and the Finality of Muhammad's Prophethood) he must also perform in actual practice the five well-defined *Obligations of the Faith*; nay, still more, he must impose the entire moral discipline of Islam upon himself and bring each and every action of his into conformity with the Law of God, so that his inner self (*Batin*—i.e., belief, conviction, motivation) is perfectly reconciled and harmonised with his outer or manifest self (*Zahir*—i.e., action and behaviour).

But it is clear that no real moral progress can be achieved unless and until we start from the belief in the basic structural and foundational principles of Islam. So the definition of *Muslim* is that belief in God's Unity and Muhammad's Prophethood is only the beginning of a process through which Man can gradually reach higher and purer stages of moral life.

It is usually the mere recitation of the *Kalima* (i.e., the Affirmation of the Unity of God and the

Prophetic character of Muhammad) which converts a non-Muslim to Islam, but if his belief is sincere it should gradually unfold and reveal to him higher and purer moral stages, and initiate him further into achieving these stages in his own life. Thus, in spite of his shortcomings and failings as a human being, if a person were simply to believe truly, sincerely and honestly in the foundational principles of Islam, he remains a *Muslim* because there is always a possibility that his inner belief would unfold within his being and goad him towards achieving higher and purer stages of moral life.

This principle is also illustrated in one of the *Traditions*. It is reported that once in a battle against the enemies of Islam, Umar overpowered an idolater. He was about to kill him when the idolater raised his hands and exclaimed: "There is no God but God and Muhammad is the Prophet of God." Umar, however, did not pay any heed to his exclamation and killed him instantaneously. When the Prophet heard of what had happened he was terribly distressed. He demanded Umar's explanation saying: "What right had you to kill a person who had recited the *Kalima* and become a *Musalman*?" Umar replied that the idolater had recited the *Kalima* not because he really believed in Islam but only because he was anxious to save his life. "How could you tell" asked the Prophet angrily, "whether he really believed or was only anxious to save his life? Had you entered his

heart to find out whether his belief was sincere or not?" Umar could not reply and remained silent. The incident had upset the Prophet to such an extent that he did not speak to Umar for many days.

The mystics and philosophers of Islam have written a lot on the intellectual difficulties of advancing even from the stage of 'complete denial' (*La'ila*) to 'affirmation' of the Unity of God (*il'allah*). The stage of 'complete denial' implies the rejection of all idols (intellectual as well as other) on which a person tends to rely in life and which tend to be infinitely numerous and endlessly recurring. They can assume the form of Reason, Lust, Wealth, Nationalism, Security, Ambition, Power—anything which interferes between Man and God. If one were to try to pass through the stage of 'complete denial' intellectually it would be impossible. It is, therefore, only through Love that Man is enabled to take a leap from the stage of 'complete denial' to that of 'affirmation' of the Unity of God. Thus in the opinion of the mystics and philosophers of Islam, without Love it is even difficult to be a *Muslim*, let alone to attempt to achieve higher and purer stages of moral life and to realise the stage of *Momin*.

When the Muslim theologians, *Ulema* and legists maintain that the *Muslim* is one who believes in Muhammad as a Prophet and who belongs

to the Muslim Community; or that any and every person is a *Muslim* who says: 'There is no God but God and Muhammad is the Prophet of God'; or that a *Muslim* is one who in addition to the belief in the Unity of God and Muhammad's Prophethood, performs in actual practice the well-defined Obligations of the Faith; or that a *Muslim* is one who believes not only in God and Muhammad but also in the Quran, angels, Prophets, Day of Judgement etc.; or that a *Muslim* is one who believes in God and the Prophet, along with a number of additional beliefs which are necessary—this by no means implies that there is a disagreement or confusion in the minds of the theologians, *Ulema* or legists about the definition of a *Muslim*. The theologians etc. hold divergent views on this subject mainly because they are endeavouring to determine precisely the exact point at which a person could be called a *Muslim* in the full and strict sense of the term, after the development which follows the recitation of the *Kalima*.

To some inner belief and conviction (*Iman*) is alone sufficient to make a person *Muslim*. Others, however, go a step further and say that unless and until actions and behaviour (*Amal*) of a person conform with his inner belief and conviction (*Iman*) he lacks the necessary qualifications for being regarded as a *Muslim* in the full and strict sense of the term. At any rate, they all agree that the process of entering into Islam begins

with the recitation of the *Kalima* or the belief in the Unity of God and Muhammad's Prophethood. Their disagreement derives only from their attempt to venture beyond the elementary and practical definition of a *Muslim* and to define with the strict and quibbling logic of mediaeval minds, the exact point in the believer's moral development at which he could be called a *Muslim* in the fullest and most perfect sense of the term. Therefore, to hold that there is such a severe disagreement among the *Ulema*, theologians and legists of Islam that no one can say in practical terms what a *Muslim* is, or that the whole of our theological and legal tradition is completely confused on this point would be an absurd and erroneous conclusion.

In recent times, the Munir Committee Report seems to have attempted to define *Muslim* objectively and in rational terms. The Committee, which consisted of the judges of the Courts of law of Pakistan, were in fact acting as a Court of Inquiry into the Punjab Disturbances of 1953. They were investigating the causes and circumstances which led to the riots in 1953 in West Punjab, but during the course of their investigations they were called upon to express opinion on certain matters of Islamic theology and jurisprudence in which, it is respectfully submitted, they were neither qualified nor trained to express opinion. The judges of our Courts of law are trained in the British legal

system and they have no knowledge of and are obviously unconcerned with the intricacies and refinements of Islamic theology and jurisprudence. They, therefore, never claimed to hold a court of inquiry in the capacity of *Qazis* or *Muftis*, and yet felt obliged to express opinion on matters of Islamic theology and jurisprudence over which they had no jurisdiction.

They raised the question: What is the definition of a *Muslim*? in the course of their investigations and examined a few *Ulema*. But instead of deducing an answer to their question (i.e., the minimum requirement for being a *Muslim*) from the evidence which was recorded before them through any of the methods known to Islamic jurisprudence (e.g., *Qiyas*—Analogy, *Istihsan*—Preference, *Masalih-mursala wa'l-istislah*—Public Good, *Istidlal*—Inference; actually they could not have applied any of these modes of reasoning because of their unfamiliarity with this field), they deemed it fit to let the evidence stand in the Report as it was recorded and they arrived at the conclusion that there existed considerable confusion in the minds of our *Ulema* about the definition of a *Muslim*.

It is respectfully submitted that the conclusion arrived at by the Munir Committee is erroneous and misleading. The Munir Committee was constituted of our judges who had no jurisdiction to express opinion on theological matters. (There is no

precedent in British law of secular judges attempting to express opinion on a theological point). But since they have expressed their opinion on this particular theological question, then their opinion as eminent judges of our Courts of law may be regarded as authoritative although it was expressed in their capacity only as members of an Inquiry Committee.

The effect of the opinion held in the Munir Committee Report is that the term *Muslim* remains undefined. What then, it may be asked, is the justification for striving for, establishing and claiming Pakistan as the home and the State of the *Muslim nation*? The conclusion arrived at by the Munir Committee as regards this question seems to strike at the very root of the ideology of Pakistan. It is submitted that the Supreme Court of Pakistan should be moved to expunge such passages from the Munir Committee Report which tend to demolish the very basis on which Pakistan is founded. It is inexpedient and against public policy to retain those passages in the Report.

It has been stated that the *Momin* represents an evolutionary stage in the moral progress of a *Muslim*. Now the question may be put: What is the definition of *Momin*?

In order to answer this question it is necessary to refer to Iqbal for he is one of those Muslim thinkers who has endeavoured to approach this

question in the midst of the twentieth century revival of Islam in the Indian sub-continent.

It has already been pointed out that God and *Momin* are interdependent and complementary forces. It is, therefore, essential to comprehend Iqbal's conception of God, the Universe and Man before enumerating the attributes of a *Momin*.

Actually, it was the study of the early Islam (particularly the alive, vigorous, and personal conception of the God of Islam) of the simple and straightforward Arab that had unfolded Iqbal to himself. Naturally he rejected the 'fixed God' of the later Islamic mysticism which emphasised fatalism, renunciation and other-worldliness, and which taught Man to surrender in the sense of dissolving and annihilating himself in the *Pure Spirit*. Iqbal's interest in early Islam had brought him into contact with the original Quranic conception of God, the God who is a living personality, who wills, moves, continuously creates and is even capable of changing His mind. (Accordingly Iqbal likes addressing God by His personal name *Allah*). He is the Perfect Individual "closed off as an ego, peerless and unique."

From God, conceived as Ultimate Ego by Iqbal, only egos proceed. "The creative energy" says Iqbal, "of Ultimate Ego, in whom deed and thought are identical, functions as ego-unities. The world, in all its details, from the mechanical

movement of what we call the atom of matter to the free movement of thought in the human ego, is the self-revelation of the 'Great I am'. Every atom of Divine energy, however low in the scale of existence, is an ego. But there are degrees in the expression of egohood. Throughout the entire gamut of being runs the gradually rising note of egohood until it reaches its perfection in man. That is why the Quran declares the Ultimate Ego to be nearer to man than his own neck-vein. Like pearls do we live and move and have our being in the perpetual flow of Divine life."²³

The Universe, therefore, is not a block universe, immobile and incapable of change. It is an ever growing universe—for God as Ultimate Ego keeps on adding more and still more into it.

What, then, is Iqbal's conception of Man? He too is an ego making a constant effort 'to be' something, and seeking every opportunity to sharpen his activity in order to acquire 'a more fundamental I am.' He, therefore, is active, cognitive and constantly desiring. He is free, creative and immortal. Everything that helps the fortification of his personality is good, and everything that weakens it, is bad. He is superior to nature because he has *personality*, and as a personality he possesses a free will. He is capable of doubt and disobedience. ("Man's first act of disobedience

was also his first act of free choice," says Iqbal). Nevertheless he is able to fortify his personality. Since God and Man are both creative in the universal process of progressive change, Man becomes a *co-worker* with God—he responds to God's commands, takes initiative and acts.

Iqbal's Man must always remain an individual. He is in essence a spiritual being realising himself in space and time, and can only be apprehended as a living force possessing rights and duties in the social organism to which he belongs. Here Iqbal supplements the idea of Individual Ego with his doctrine of Collective Ego, conceiving thereby a community of unique individuals—a tangible whole embracing parts.

The doctrine of Collective Ego had a profound influence on the development of his social and political ideas. He applied his metaphysics and ethics to a particular and exclusive society—a society which should have a well defined creed and a capacity to enlarge its membership by example and persuasion. "Such a society," he said, "according to my belief is Islam." Islam, in his opinion, recognises "the contact of the ideal with the real, says 'yes' to the world of matter and points the way to master it with a view to discover a basis for a realistic regulation of life."²⁴

The important feature of Iqbal's conception of Man is that Man's awareness of God as his

co-worker sharpens Man's understanding of the necessity for his activity, gives him dignity, and fills him with strength, courage, confidence, a sense of righteousness and hope. As a result all the conflicts and struggles of Man assume an ethical character. Man can and must create a better world because God is by his side as a *co-worker*.

So much for Man, but what is the *Ideal Man* of Iqbal? He is the person who can fortify his personality. He is the *Momin*, the *Free* (*Mard-i-Hur*), the *Righteous* (*Mard-i-Haq*), the *Sage* (*Mard-i-Bazurg*) and the *Godly* (*Mard-i-Khuda*).

In the opinion of Iqbal the cultivation of the following attributes could fortify the personality of Man and help him to achieve in this life the stage of moral development called the *Momin*.

Love

It is the basic inner (*Batini*) quality of the *Momin* which sustains Faith (*Iman*) in the Unity of God and thus unifies and harmonises the thoughts and activities of the *Momin*. It is a mode of knowledge and a higher form of experience. It includes love of God, His Prophet, His Law and the whole of His Creation.

According to Iqbal, the intensity of desires is heightened by Love. Love is in essence free and therefore it has the capacity to fortify personality.

Defining Love, Iqbal maintains: "The word is used in a very wide sense and means the desire to assimilate and to absorb. Its highest form is the creation of values and ideals and the endeavour to realize them. Love individualizes the lover as well as the beloved. The effort to realize the most unique individuality individualizes the seeker and implies the individuality of the sought, for nothing else would satisfy the nature of the seeker." Hence the *agony of separation* (*Firaq*) is transformed into the *joy of distinctness* in Iqbal's conception of Love.

Love is the real basis of all religious, moral, spiritual and temporal life. Iqbal divides religious life into three stages: (a) *Faith* (i.e., submission to discipline); (b) *Thought* (i.e., a rational understanding of the discipline and the ultimate source of its authority); and (c) *Discovery* (i.e., the desire to come into direct contact with the Ultimate Reality). "It is here" Iqbal holds, "that religion becomes a matter of personal assimilation of life and power; and the individual achieves a free personality, not by releasing himself from the fetters of the law but by discovering the ultimate source of the law within the depth of his consciousness."²⁵

Religion, to Iqbal, is the *Momin's* total attitude—intellectual, emotional and practical towards the Universe as a whole. It is neither mere thought,

nor mere feeling, nor mere action; it is the expression of his entire self.

Conservatism in religion is dangerous just as in other departments of human activity, for, in the opinion of Iqbal: "It destroys the ego's creative freedom and closes up the paths of fresh spiritual enterprise." The *Momin*, therefore, has an infinite capacity for *tolerance* and respect for the beliefs and convictions of others.

Prayer is an expression of the *Momin's* inner yearning for a response from God. It is a unique process of discovery. It is the *Momin's* escape from mechanism to freedom. It is spiritual culture, which like intellectual and aesthetic culture is a means for achieving a more perfect and purposeful life. Prayer is the means by which the *Momin* continuously discovers values, and the source from which he derives the strength to work to express these values in the context of the material world.

Iqbal insists on the socialisation of spiritual illumination through associative prayer because the spirit of all true prayer is social. Thus the *Momin* achieves the real object of prayer through congregational prayer i.e., an association of *Momins* who "animated by the same aspiration concentrate themselves on a single object and open up their inner selves to the working of a single impulse."²⁶

Posture of body, Iqbal thinks, determines the attitude of mind; and one particular direction in the congregation secures the unity of feeling and creates a sense of social equality.

Freedom

The *Momin* is free and through his Freedom he helps in the march of humanity. His Freedom does not imply releasing himself from the fetters of law but Freedom means fortification of his personality through the acceptance of the discipline of Islam upon himself as well as upon the Community. He possesses freedom of thought and action. He is politically free.

Disinterestedness (Faqr)

There is no one word in English to convey the exact meaning of the term *Faqr*. It indicates the attitude of mind that enables the *Momin* to strive for goodness without caring for the pleasure or joy of its achievement. It is an attitude of complete detachment from and superiority to one's worldly possessions. It makes the character of the *Momin* distinctive. It is an expression of actions motivated by no other desire than to fulfil the Law of God for its own sake. It is an expression of direct consciousness of duty born out of Love.

Iqbal uses the symbol of the *Eagle* for interpreting his conception of Islamic *Faqr*. The *Momin* like the *Eagle*, is proud and self-respecting; he, therefore, would never live on what has

been hunted by someone other than himself. In other words, the *Momin* only lives on his own endeavours and earnings in life. For him every profession or occupation is forbidden unless and until it involves labour (mental or physical). He, therefore, has the conception of the dignity of labour. In his view the true parasites of society are those who do no work themselves, and live off the struggles of others. In the ideal society of *Momins* there would be no such parasites.

Like the *Eagle* again, the *Momin* is disassociated and detached. He soars high, likes privation (in spite of taking part in worldly activity) and is sharp-sighted. He does not indulge in boastful talking; is polite, courteous, and modest; he speaks little but acts. He is pure-hearted and pure-eyed. He is charming, frank and outspoken. He always stands by the Truth.

Courage

Without physical and moral Courage Man cannot achieve anything in any world whatever. The weak succumb to obstacles. To the *Momin*, however, obstacles provide chances for the manifestation of his potential virtues. Courage is the secret of the *Momin*. It is his triumph over fear of anything other than God. With Love, Courage is strengthened. Courage is constant striving against the forces of evil. Its goal is martyrdom (*Shahadat*) for the sake of Good.

It implies entirely personal effort and struggle. Courage in the *Momin* also denotes his capacity to suffer and to endure. He is strong-willed, tough and determined. It is courage, toughness, forgiveness, purity and power that constitute a *Momin*. The *Momin* believes in living *dangerously*, defying all powers which tend to obstruct the achievement of Right. It is a strong man's frankness, it is the tolerance of a strong man's faith. The *Momin* is the soldier of God. He fights for the sake of God alone. He is the protector, the shield, the blade and the steel. He is the scale of justice.

Creative Activity

When all life is a creative movement, a constant effort, an unceasing quest, when it is original, essential and spontaneous, then naturally action becomes a prominent feature of the *Momin's* character. It is only through creative action that the *Momin* becomes a *co-worker* with God and belongs to God's party.

Historical Context

The *Momin* has a perception into the trends of history. He is able to change, mould, shape and cast history in accordance with his ideals. History is the fruit of his initiative. He creates history.

What are the factors which cause the deterioration of human personality? To Iqbal the all-inclusive cause is *stagnation*, that is the opposite of creative activity. It implies the absence of

activity, or lethargy. *Stagnation* gives birth to fear, treachery, sedition, cowardice, begging or asking (not only for the means of livelihood but also for thoughts, habits etc. from the others) imitating, and finally slavery. Slavery distorts character and weakens personality. The *Momin*, therefore, can only be brought up in a spirit of freedom.

The activity of the *Momin* is vital because his will has been sharpened by the creative assurance that "the world is not something to be merely seen or known through concepts but something to be made and remade by continuous action." This realisation is a moment of supreme bliss and also a moment of the greatest trial for the *Momin*.

There is no object in an academic discussion on the attributes of the *Momin* unless and until there are possibilities of creating means and circumstances under which he could breathe, live and move among us again as he breathed, lived and moved in the early history of Islam. It is also necessary for the successful moral development of Pakistan in contemporary history that the *Momin* is re-cast and re-lives in this country.

Could the mere teaching of Theology at schools and universities transform our younger generations into *Momins*? The observations of K.G. Saiyidain, the eminent Indian Muslim educationist are worth quoting: "A good deal of discus-

sion that has been going on regarding the place and importance of moral (and religious) education in schools is merely concerned with the teaching of dogma and ritual and a large majority of the text-books used only attempt to do that and no more. Now, there is undoubtedly a place for their teaching in a comprehensive scheme of moral and religious education but the problem is really much bigger and deeper, and Iqbal takes the correct view when he says: 'Goodness is not a matter of compulsion; it is the self's free surrender to the moral ideal and arises out of a willing co-operation of free egos. A being whose movements are wholly determined cannot produce goodness. Freedom is thus seen to be a condition of goodness.' The quotation brings out two very important principles underlying moral education. Firstly, education cannot produce or stimulate genuine moral behaviour by teaching a set of ready-made moral maxims which the students are expected to act upon mechanically and without question. Morality involves choice and free-will. It is only through personal experience, which is guaranteed a reasonable degree of freedom, that we can work out, thoughtfully and often with travail, a code of effective personal morality. With such a background of experience, gained in the give-and-take of everyday social intercourse, theoretical moral maxims cannot be transformed into persistent motive forces of conduct. Secondly,

the quotation underlines the significant relationship of *moral* to social behaviour. Morality cannot be taught or learnt in isolation; it arises out of the 'willing co-operation of free egos' which implies that the schools must provide full opportunities for social life and social experience and must utilize in their day-to-day work the healthy motives which operate in community life. All the educational movements which introduce social motives and methods in schools and offer scope for co-operative work done tend to 'moralize' the process of education and should, therefore, be welcomed."²⁷

Since mysticism as an institution which provided spiritual and moral training in the early phases of Islamic history is a spent force and has practically died long ago, it is essential that our educational institutions should inculcate and encourage the dissemination of the attributes and moral virtues of the *Momin* among our youth. Youth fraternities (male and female) might be formed and constituted in our schools, universities and military academies on the basis of the moral virtues enumerated above. If these fraternities could disseminate and engender the virtues of the *Momin* among our youth, then we could hope to see an outburst of new and creative life among our people, an enthusiastic response to the call to be *co-workers* with God in building a good and just society in our land, and the development of free,

loving, courageous and vital people committed to devoting their lives to the service of the common good and energetically working to find solutions to all the many problems which today harass, blind and frustrate us.

Chapter 6

PAKISTAN, HINDUISM AND COMMUNISM

The Muslims claimed Pakistan firstly, because they felt that they were distinct from the Hindus, and secondly, because they desired to develop themselves on the lines of their own distinctive culture. Thus it would be wrong to say that the basis on which Pakistan was founded was *communalistic fanaticism*, or the anxiety of the Muslims to establish an *Islamic Theocracy* in the areas where they constituted a numerical majority.

Pakistan was not founded on the philosophy of *hatred* of the Hindu. "A community" says Iqbal, "which is inspired by feeling of ill-will towards other communities is low and ignoble. I entertain the highest respect for the customs, laws, religious and social institutions of other communities. Nay, it is my duty, according to the teaching of the Quran, even to defend their places of worship if need be. Yet I love the communal group which is the source of my life and behaviour; and which has formed me what I am, by giving me its religion, its literature, its thought, its culture, and thereby recreating its whole past, as a living operative factor, in my present consciousness."¹

It is, then, this higher aspect of communalism that may be regarded as the basis on which Pakistan was founded. The value of this type of communalism has also been recognised by the authors of the Nehru Committee Report (1928), for when discussing the separation of Sind from Bombay Presidency they observed: "To say from the larger viewpoint of nationalism that no communal provinces should be created is, in a way, equivalent to saying from the still wider international viewpoint that there should be no separate nations. Both these statements have a measure of truth in them. But the staunchest internationalist recognizes that without the fullest national autonomy it is extraordinarily difficult to create the international state. So also without the fullest cultural autonomy, and communalism in its better aspect as culture it will be difficult to create a harmonious nation."²

Pakistan was, therefore, established on the principle of Muslim nationalism, i.e., the securing of complete and absolute Muslim national and cultural autonomy. The 'Two-nation Theory' was put forward as an exposition of this very principle. Some critics of Pakistan attempt to assert that Quaid-i-Azam invented this theory, and that it had no true historical basis in Indian Islam. But in reality the problem of the two nations originally came into existence soon after the Muslims enter-

ed India as conquerors. The earliest account of the distinction between the Hindus and the Muslims has been provided by Al-Beruni, who visited India in the company of Sultan Mahmud in the ninth century. He writes in his famous work entitled *Kitab-al-Hind* as follows about the differences he observed between the two Communities: "The Hindus entirely differ from us (the Muslims) in every respect, many a subject appearing intricate and obscure which would be perfectly clear if there were more connections between us."³

Concerning the contrasts he observed between the customs, habits and manners of the Hindus and the Muslims, he says: "One might think that they had intentionally changed them into the opposite, for our customs do not resemble theirs, but are the very reverse; and if ever a custom of theirs resembles one of ours, it has certainly just the opposite meaning."⁴ And he enumerates the following reasons for the complete and entire isolation of the Muslims as a Community from the Hindus: "All their (Hindus') fanaticism is directed against those who do not belong to them—against all foreigners. They call them *Malechha*, i.e., impure, and forbid having any connection with them, be it by inter-marriage or by any other kind of relationship, or by sitting, eating and drinking with them, because thereby, they think they would be polluted. They consider as impure anything

which touches the fire and water of a foreigner, and no household can exist without these two elements. They are not allowed to receive anybody who does not belong to them even if he wished it, or was inclined to their religion. This renders any connection with them quite impossible, and constitutes the widest gulf between us and them."⁵

These thoughts were expressed one thousand years ago. The history of the Indian sub-continent shows us that numerous unsuccessful attempts were made to solve this problem of the isolation of the two Communities from each other. In the sixteenth century, the Emperor Akbar renounced Islam in an effort to amalgamate the two Communities, but he failed mainly because the two Communities showed no inclination to merge themselves into one another willingly. Then in the seventeenth century, the Emperor Aurangzeb tried the alternative method of attempting to impose strictly the laws of the ruling Muslim minority upon the unwilling Hindu majority. This attempt also failed because the subject Hindu majority would not accept it. In the nineteenth century after the decline of the power of the Mughals, and when India had fallen into the hands of the British, Syed Ahmad Khan recognised the seriousness of the same problem. Later on in the beginning of the twentieth century, Maulana

Muhammad Ali also said that there were two nations in India. Iqbal went a step further and vigorously proclaimed the need of a separate state for the Muslim nation in the Indian sub-continent. In the end, it was Quaid-i-Azam who solved the problem which had appeared insoluble even to such autocratic and all-powerful Emperors as Akbar and Aurangzeb.

Quaid-i-Azam observed: "The Hindus and the Muslims belong to two different religious philosophies, social customs, literatures. They neither inter-marry nor inter-dine together, and indeed, they belong to two different civilisations which are based mainly on conflicting ideas and conceptions.... A Muslim according to the Hindu religion and philosophy becomes an outcast and he becomes a *malechha*, and the Hindus cease to have anything to do with him socially, religiously and culturally or in any other way. He, therefore, belongs to a different order, not only religious, but social and he has lived in that distinctly separate and antagonistic social order, religiously, socially and culturally. It is now more than a thousand years that the bulk of the Muslims have lived in a different world, in a different society, in a different philosophy and a different faith."⁶

There is a thousand years of history between the observations of Al-Beruni and the above extracts from the speeches of Quaid-i-Azam. It is

quite apparent that the Hindus and the Muslims were not able to come close to one another even in one thousand years of living together. Clearly it is not possible to say that Quaid-i-Azam invented the problem and the theory of the two nations.

At any rate, it would be worthwhile to probe into and critically examine some of the reasons why the Hindus were hostile and opposed to the Muslim demand for the establishment of Pakistan on the basis which has already been stated.

The Hindu leaders believed and the Hindu Press put out propaganda to the effect that the independent Muslim state would be a *theocratic* state, that it would annihilate the non-Muslim minorities, form alliances with adjoining Muslim states, revive the *Pan-Islamic* movement and become a menace to Hindu India. One of the British supporters of Hindu nationalism, namely Edward Thompson, even went so far as to put the suggestion in the Hindu mind that the creation of a Muslim state in the North-West would bring back the days when the waves of the raiding Muslim armies swept down the plains of India.⁷ Edward Thompson seems to have forgotten that India's more recent invaders came by the sea, and that the Second World War has shown that India is more vulnerable to a Japanese or possibly a Red Chinese incursion from the East and North-East.

Anyway, in order to dispel the fear of the Hindus that the Muslims of the North-West would join the Muslims from beyond the Frontier and invade Hindu India, Iqbal advanced a 'joint-defence' proposal. He said in 1930: "The North-West Indian Muslims will prove the best defenders of India against a foreign invasion, be that invasion the one of ideas or of bayonets. The Punjab with fifty-six per cent Muslim population supplies fifty-four per cent of the total combatant troops in the Indian army, and if the nineteen thousand Gurkhas recruited from the independent state of Nepal are excluded, the Punjab contingent amounts to sixty-two per cent of the whole Indian army. This percentage does not take into account nearly six thousand combatants supplied to the Indian army by the North-West Frontier Province and Baluchistan. From this you can easily calculate the possibilities of North-West Indian Muslims in regard to the defence of India against foreign aggression.... I have no doubt that if a Federal Government is established, Muslim Federal States will willingly agree, for purposes of India's defence to the creation of neutral Indian military and naval forces. Such a neutral military force for the defence of India was a reality in the days of the Mughal Rule. Indeed in the time of Akbar the Indian frontier was, on the whole, defended by armies officered by Hindu generals. I am perfect-

ly sure that the scheme of a neutral Indian army, based on a federated India, will intensify Muslim patriotic feeling, and finally set at rest the suspicion, if any, of Indian Muslims joining Muslims from beyond the frontier in the event of an invasion."⁸

The other reasons why the Hindus were hostile to and opposed the Muslim demand for the establishment of Pakistan were that it would lead to the partition of India, which, in the words of Gandhi amounted to a *vivisection* or in the words of Mr. C. Rajgopalachari it meant *cutting the baby into two* or *cutting the mother cow into two halves*.⁹ The Hindu leaders also suspected that the Muslim state would serve as a tool of British imperialism and thereby lay chains on the freedom of India.

It is now more than ten years since Pakistan came into being; but she has neither become a *theocratic* state, nor has she annihilated the non-Muslim minorities. Although she has formed alliances with some of the adjoining Muslim states, the idea of reviving the *Pan-Islamic* movement with aggressive designs against Hindu India has never crossed the minds of the Muslims of Pakistan. It would, therefore, be absurd to think that the Hindus regard the establishment of Pakistan as a menace to them.

Then, are the Hindu leaders so credulous and superstitious as to consider the partition of the Indian sub-continent as *vivisection* or *cutting the baby or mother cow into two halves*? Indeed the Hindu leaders may have advanced these analogies at one time to rouse the religious feelings of the Hindu masses against the Muslim demand for Pakistan, but it would certainly be absurd to think that the Hindu leaders still loathe, are horrified by or hate the wretched Muslims for having actually committed the beastly crime of *vivisection* or *cutting the baby or the mother cow* instead of the partitioning of the Indian sub-continent on a geographical basis.

Again, it would be absurd to think that the Hindu leaders suspect that Pakistan is serving as a tool of British imperialism and thereby laying chains on the freedom of India, particularly when they are fully aware that British imperialism is in a state of being wound up and that India is as free and independent as Pakistan to pursue her internal and external policies in accordance with her own needs and requirements.

Why then does India still continue to follow a policy of hostility towards Pakistan? Why does she endeavour through all possible means (short of an actual armed aggression) at her disposal to undo Pakistan? The answer to these questions appears to be simple: the Hindus have not yet been

reconciled to the idea of partitioning the Indian sub-continent. But in reality the problem is definitely more complex and deep. It may be that India does not allow herself to become reconciled to the idea of the partition of the sub-Continent because the establishment of Pakistan interferes with or hinders her claim to the leadership of the entire Asiatic and African world. Pakistan and her alliances with some of the adjoining Muslim states are a stumbling block against the realisation of India's dream of a neutralised South Asia and Africa.

Indeed as a conscientious, polite and courteous neighbour Pakistan has no right to challenge the validity or to criticise the romantic claims and dreams of India, but Pakistan has every right to defend her position (particularly when she realises that India's claims and dreams do not suit her needs and requirements) and to protest that if she differs with India in certain respects, that is no justification for India to pursue a policy of undoing her.

What are the means which India adopts for undoing Pakistan? It is essentially her unfriendly, uncompromising and hostile attitude with regard to the solution of the Indo-Pakistan disputes.

The outstanding dispute between India and Pakistan is the dispute regarding the accession of

the States. At the partition of the Indian sub-continent, the States with Hindu population being surrounded by Indian territory, acceded to India; whereas the States with Muslim population adjacent to Pakistan, acceded to Pakistan. However, the accession of three States—Junagadh, Hyderabad and Kashmir remains undecided and leads to bitterness between India and Pakistan. The States of Junagadh and Hyderabad had been occupied by India through actual armed assaults. In Kashmir (a predominantly Muslim State with a Hindu ruler) armies of India and Pakistan had formerly been fighting an undeclared localised war.

With regard to the Kashmir dispute, the sympathies of the United Nations and the opinion of the free world are certainly in favour of Pakistan who has consistently taken a moral stand, i.e., to allow the people of Kashmir to decide for themselves through the means of a free and fair plebiscite whether they desire to join Pakistan or India.

India realises that if a free and fair plebiscite is held, Kashmir being predominantly Muslim may vote for joining Pakistan. India also realises that Kashmir is a question of life and death to Pakistan (particularly West Pakistan) because all her rivers take their source from Kashmir. But since India is consistently following a policy of un-

doing Pakistan, she is absolutely uncompromising and turns her face aside at the very suggestion of holding a plebiscite in Kashmir.

India monetarily sponsors and instigates a neighbouring state of Pakistan to carry on propaganda for the establishment of *Pakhtoonistan* and supports certain misguided, sick and old Indian nationalist elements within Pakistan to serve as her agents and tools. On the other hand, taking advantage of the trade restrictions between India and Pakistan, she actively supports the Communist element in East Pakistan because an economically dislocated East Pakistan would obviously be easy to disintegrate and break off from Pakistan. She would deliberately prolong the solution of the dispute regarding the distribution of river and canal water between India and Pakistan so that West Pakistan may be economically disrupted. She would not even hesitate to avail of the services of the Communists by infiltrating them into Pakistan so that they could support and back the 'Pindi Conspiracy', the object of which was to usurp the very State in Pakistan. At the same time India spends large sums on her defence although it is against her policy to attack anybody or to join military blocs.

Can we hope for a *rapprochement* with India? So long as the present political leadership remains in power in India and so long as there is no change

in the international political situation, there is little likelihood of an understanding or a *rapprochement* with India. Pandit Jawaharlal Nehru, although a man of very wide cultural sympathies, a man who had the idealism and flexibility to adapt himself to anything for peace and friendship in the world, has now in his declining years become rigid, inflexible and stiff, and his ideas have become crystallised. Unless changes in the international situation force a change in India's attitude to Pakistan, or unless younger and more tolerant leaders achieve power in India, we could have little hope for better and improved relations with India.

Under the present circumstances then, how should the disguised offensive of Hinduism against Pakistan be combated? We must simply wait patiently and provide no cause of grievance to India. We should consistently adopt a friendly, compromising and charitable attitude towards India with regard to the Indo-Pakistan disputes. We must assure India that we are facing the same kinds of problems of economic reconstruction that she is facing herself, and that we have no aggressive designs against her. Meanwhile we must wait patiently and watch the development of the international political situation. It is very likely that India shall have to change her present policies towards Pakistan in the light of new developments which may take place within India in the near future. Communism is gradually gaining ground

in India. Tibet has fallen into the hands of the Red Chinese and this event is likely to have far-reaching consequences in terms of India's policies. In Kerala when the Communist Government was in power, Hindus joined with Muslims in trying to oust them. If West Bengal were to fall into the hands of the Communists, as is likely to happen, a direct link with Red China would be established and the situation in India might completely change.

India may adopt a neutralist policy to suit her convenience, but she loves her hard won freedom. Therefore, she will continue to remain on friendly terms with the Communist bloc only so long as she herself is not threatened by the establishment of Communism within India. When such a situation arises, she will either have to change her attitude towards Pakistan, or fall into the hands of the Communists.

In such circumstances, we cannot do anything except to watch the development patiently. We should try to solve the Indo-Pakistan disputes as early as possible in a spirit of friendship. It is necessary for the solution of her economic problems that Pakistan should be on good terms with India, because so long as the Indo-Pakistan disputes remain undecided and the two countries keep on preparing to go to war against each other, neither Government would be in a position to adopt a programme of economic reconstruction.

COMMUNISM

The interpretation of Marx's *dialectical materialism* is briefly as follows: that the process of history is a process of class war; that the end of the process would be achieved when the lowest class, i.e., the proletariat, seizes power and establishes the dictatorship of the proletariat; that when this occurs a classless society will emerge, the State will wither away, and everyone will live in peace, prosperity and happiness; that all religious and metaphysical ideas are merely ideological superstructures and methods of rationalisation of existing economic conditions; and that there is no transcendent Reality outside of Man, therefore, all idealism and religious beliefs are simply projections of Man's mind through which he justifies existing conditions. (Marx called religion 'pie in the sky'—a trick by which the rich made the poor accept their poverty in this world by telling them that they would be rewarded in the Hereafter).

The Communists, therefore, claim that they alone understand the process and the goal of history; theirs is the exclusive access to the truth and consequently all ideas other than theirs must be erased or eradicated from the human mind. This exclusive knowledge gives the Communists the right to absolute power, and frees them from all ethical and moral responsibility. Accordingly

murder, robbery, sabotage, or the committing of any criminal offence is justified in the interests of the achievement of the dictatorship of the proletariat.

The emotional foundations of Communism are laid on *hatred* for all non-Communists because the latter are considered the enemies of the proletariat, or the tools and instruments of decadence, the people who oppose the development of the classless society and must, therefore, be either converted or liquidated. Thus the Communists inevitably become fanatical since they believe that anyone who disagrees with them is an enemy. ("He who is not for us, is against us.") They also believe that capitalism, democratic socialism and all the other political systems of the world are decadent and inevitably destined to deteriorate or be destroyed by the rising proletariat. Hence the Communists in each and every country owe allegiance only to the Communist Party and even if they are elected to a parliament where other parties are represented, their exclusive object is not to cooperate with any other party except for the purpose of destroying the existing political system.

What are the achievements of Communism when put into practice? In both the U.S.S.R. and China, the Communists have had immense success in terms of commanding absolute allegiance from their followers. They have been able to do this

mainly because of their emphasis on an educational policy which is founded on the belief that only Communist theory should be taught, and that it should be drilled into the minds of the children as well as the adults. This device is very effective particularly in those countries where the background of the masses is illiteracy and gross class distinctions. (Marx was certain that Communism would succeed in Germany and Western Europe, but this did not happen because an educated and critical industrial class has always been opposed to accepting the inflexibility and rigidity of the Communist doctrines. They rather formed trade unions which gradually led to the development of democratic socialism in some of the Western countries.)

However, the effect of drilling Communist theory into the minds of the peasants and workers has been to release a flood of energy and activity. The people indoctrinated in this way have accepted willingly the orders to work extremely hard. Accordingly cities and factories have been built, sanitary measures have been enforced, and new methods of agriculture have been implemented. All the old lethargy and stubbornness of the peasants (against change) is eliminated both by compelling them to adopt new methods under threat of severe punishment and by educating them to believe that the new forms of activity would make

them supremely happy and prosperous. As a result almost overnight literacy has been developed throughout the Communist countries, agriculture has been collectivised, and a vast programme of industrialisation has been implemented. The Communist Party lays down five-year plans and the people are forced to carry out unquestioningly whatever the plans demand.

The material achievements of Communism have been accomplished mainly because the Communist leaders have absolute power, are responsible to no one in heaven or earth for their actions (or so they think), and do not hesitate to use any form of force to accomplish their aims and objects.

In Russia thousands of peasants who resisted the collectivisation of agriculture were annihilated or sent to forced labour camps. These forced labour camps, which are full of political prisoners and deviationists of various kinds, have also been used as a method for accomplishing feats of building, mining etc.

Communism in practice means complete surrender of freedom of thought and action. Anyone who disagrees with the Communist doctrines (intellectually or otherwise) is either destroyed, exiled, or brain-washed. Brain-washing is a device adopted by the Communists through which a person is subjected to intensive indoctrination, questioning, and psychological pressure of various

kinds until he agrees to accept as true whatever the Communists teach him. This process naturally destroys mental and moral integrity and produces robots from the ruins of human personality who believe and act exactly as their masters command.

The liberal university tradition has completely disappeared from the Communist countries because history, philosophy, *Dialectics* and *Objective Truth* are taught only in the light of Communist theory and no criticism is permitted. The Communists are, therefore, rearing a generation of people who are as ignorant of the thought and life of the outer world as if they were from another planet.

True brotherhood and co-operation are not possible under the existing Soviet system because everything is subordinated to production. In the U.S.S.R. the *Stakhanov* scheme provides rewards for those who produce most efficiently, and demands that each and every worker should produce at the same rate as the best. The appeal to personal egotism makes every worker the competing enemy of his fellow worker.

Under the Soviet system Man is loyal only to the totalitarian State, not to any person or any group. The State owns all property. Thus on collective farms the workers are really just tenants

of the State, working for the State. They are not permitted to set up independent groups e.g., local self-governing bodies which would be free to develop along their own lines, but everything is subordinated to the plans from the Centre.

True brotherhood and co-operation are also non-existent because of the maintenance of the Secret Police system (N.K.V.D. in the U.S.S.R.). Since the Communist theory is that each and every citizen must believe and think exactly as the Communist Party dictates, the Communist leaders maintain a vigilant watch throughout every corner, every village, every city, every farm, every factory, and every home to ensure that all citizens are thinking as they should. This is accomplished by the enormous and elaborate N.K.V.D., the effect of which is to create distrust everywhere because nobody knows who is a spy for the State. Hence everyone watches his words and is under the pressure of fear to try persistently to conform his mind to what he is expected to believe. Thinking the wrong thoughts might mean thinking the wrong thoughts *aloud*, which might lead to condemnation as an enemy of the people, and a sentence to a forced labour camp.

The Judicial system of the Communists is primitive and barbaric because it assumes that a person is guilty if the Communist Party says he is guilty. The State guarantees no rights for the in-

dividual; in fact the individual is entirely at the mercy of the State.

One of the most grotesque features of Communist history has been the trials of former Communist leaders accused of wrong thinking and betrayal of the cause. In reality such trials only indicate that these leaders have lost in the struggle for power among the top Communists, but the triumph of the victorious leaders has to be celebrated at the kinds of trials which are a mockery of justice. Accordingly the vanquished leaders confess at length to their ideological crimes, accuse themselves, condemn themselves and affirm that it is a great honour to be corrected of error by the State which is always right and which cares with such tenderness for its people. Thus the State not only condemns arbitrarily and without reference to any authority outside its own will, desires, whims and caprices, but it also humiliates the individual by forcing him to condemn himself as a traitor. Consequently those who are condemned by the Communist Party almost always do publicly confess that they are traitors. The primitive nature of the Communist legal system is also manifested in the belief of the Communist Party that the people could and should accept the truth of such mock trials.

The political system which the Communists have evolved is also a mockery of the idea of de-

mocracy. Here, too, although they retain the external form, they empty it completely of all real meaning. It is, therefore, a fictitious democracy, firstly, because the Council of the Supreme Soviet has almost absolute power, and it constantly watches the trends of thought and activities of the people through the N.K.V.D. Secondly, because of the practice of public nomination of candidates everyone knows in advance which persons the Communist Party wants to be elected; and thirdly, because of the absence of opposition parties under the Soviet system, for according to the Communist philosophy any and every person who disagrees on any point is a traitor, and the traitors are quickly found out. They are prompt in tendering confessions, are accordingly humiliated by public trials and punished. (In the early years of Stalin's rule almost all the Communist leaders who had preceded him were purged and condemned in this way).

There does not exist any real democracy within the factories and the collective farms because the managers are employed by the State to get as much work as possible out of the workers. The managers get bonuses from the State, if production increases, and they are authorised to lower the wages of the workers if they are dissatisfied with production. Thus the workers do not have even as much protection as they have under

capitalism or democratic socialism because they have nothing in the way of trade unions or local self-governing bodies with effective power to strike, protest against or criticise the policies of the State.

The managers and the civil servants are not secure and protected either because their thoughts and activities are constantly under the eye of the N.K.V.D. They could, at any time, be condemned (for wrong thinking or failure to produce or work efficiently), humiliated or punished. Thus no individual and no group anywhere in the State is able to protect itself against the arbitrary will of the few Communist leaders at the top. These few leaders have a degree of absolute power unprecedented in the history of mankind.

What is the effect of Communism on the rest of the world? The effect of the Russian and Chinese revolutions on the rest of the world has been dazzling, confusing and terrifying. The world has been dazzled by the material success of the Communists in industrialising vast areas in a few decades and by the unprecedented overnight transition of millions of people from a mediaeval illiterate peasant stage of development to the status of literate and skilled industrial workers.

Since the fascination of Communism lies in its promise of the immediate transformation of the whole of society, it appeals to all those who are

oppressed and frustrated by class, racial and religious hostilities and antagonisms, unemployment, insecurity, illiteracy and social inferiority. It also speaks to those intellectuals who feel frustrated by the emptiness and lack of sense of purpose in life and offers them the vision of working selflessly for the common good. Communism dazzles because its talk is focussed on the future—it promises a radiant and perfect future in this world for everyone and promises that all this can be achieved quickly and easily by the surrender of one's will and mind to the dictates of the Communist Party.

"One cannot understand the Communists" observes Helmut Gollwitzer, "until one has grasped the fact that since the times of Marx they have all been fascinated by the picture of what man might be in the future.... (In their view) we are now only at the beginning of the history of man and the real man is only now standing before us. His era will begin when Communism triumphs over the class-ridden society.... History up till now has been nothing but a laborious struggle of man to find his way out of the primeval forest; religions, racial hatred, wars—all these are the dead wood of the primeval forest. The man of the future will be able to dominate completely the laws of nature, a transparently rational being with a will ruled entirely by reason and freed from everything that

was stupid, irrational and sub-human. Gorki once said that Lenin was the only man alive then who lived entirely in the future, the land of the future lay before his eyes as though it was in the present, as faultlessly fashioned as crystal."¹⁰

This fascination with the future has the double effect of blinding the Communists to the realities of both the present and the past. Being blind to the present allows them to ignore shortcomings in their own system and permits them to continue to believe that capitalism must be destroying itself (because Marx said it would), that workers in the West are starving, are bitterly exploited and miserable, and that socialist governments (like the Welfare State in England) have done nothing for the workers. Although the Communists claim that Marxism is a science, they are actually the least scientific of men in many ways. They begin by passionate belief in the Communist theory and refuse to accept any evidence which might disprove any small portion of their theory. Blind fanaticism of this kind always leads to the shattering of moral and ethical values. Accordingly the Communists feel entirely justified in exploiting racial hatreds, in attempting to break up democratic governments, in sabotage, in any kind of destructive activity against non-Communist political systems. The Communists are permanently at war with the rest of the world, and believe that

in war everything is permitted against the enemy.

They are also blind to the past since they believe that everything in the past was primitive and sub-human. This is the reason why in their schools and universities the Communists have no concern to teach about the literature, history, philosophy and religion of the past. Religion for them is simply an outdated curiosity—a peculiar habit of ignorant and primitive Man. The Communist Man—modern, scientific, rational, radiant, sees things *dialectically* and believes only in *Objective Truth*. He has nothing to do with such primitive and superstitious ideas as God, Moral Law and Divine Judgement on the affairs of mankind.

The Communists have confused the world because of the contradiction between their promise to offer a perfect, just, classless and stateless society—and the reality of their practice in terms of absolute state power, purges, brain-washing, injustice and oppression.

Communism is dangerous because it engenders blind fanaticism and hatred, and denies the right of existence to any and everybody who does not accept the Communist creed. It is completely devoid of intellectual humility and tolerance. It rejects the idea that love and freedom are impossible in a state which is founded on fanatical adherence to a theory (that is enforced by Secret

Police and purges). Communism is also dangerous because of the force and violence of its propaganda which is constantly pouring in streams all over the world. The essence of this propaganda is that if a lie is repeated loudly enough and often enough then everyone believes in it. The propaganda machines of the Communists ceaselessly condemn capitalists, imperialists, colonialists and all the oppressors of the poor. They promise immediate relief and a brave new world to all those who will surrender to the Communist Party and give their lives to its purposes. The more illiterate, poor, hungry, oppressed, frustrated, confused and ignorant a people are the more prepared they are to be seduced by the soft words and bright promises of the Communist propaganda.

Communism appeals particularly in areas like Asia (and Africa) which have recently thrown off the yoke of Western imperialism and colonialism (or which are in the process of doing so) and have gained their liberty and independence. It appeals in such areas because the contrast between the illiteracy and gross class distinctions, hunger, poverty, disease and terrible conditions of work or unemployment, and the availability of a new life in an industrialised society seems so overwhelming. It teaches that the cause of all their misfortunes is simply adherence to wrong ideas (religion, caste, feudalism etc.) and that the new life is

available immediately by accepting the new creed of Communism, by having a revolution, and by obeying faithfully the dictates of the Communist Party. In Asia this appeal is particularly strong because Asians can see that in China the previously illiterate and oppressed peasants have destroyed their old masters and achieved a new and seemingly better form of life.

Communism is a new form of imperialism, intent on the acquisition of territory and power. It is, at the same time, a powerful and deadly germ ready to infect the body in a moment at any place where there is a weakness. Pakistan, as a young Asian country, is vulnerable to the ideological invasion of Communism. How then should Pakistan combat this offensive?

Islam in Pakistan would be a weak spot if it is allowed to remain in the form of a religion which fits the Communist description of 'pie in the sky', i.e., if it teaches fatalism, keeps the poor oppressed, justifies social inequality, or rejects the idea of transforming conditions in the material world so that immediate equality, happiness, prosperity and justice for all may be attained.

The Communists maintain that religion is a tool by which the rich blind the eyes of the poor, and it is unfortunately correct to some extent for in practice religion almost always has tended to be

on the side of conservatism and reactionary forces, and against social change.

The Communists also preach that religion is based essentially on primitive and barbaric superstitions. The existence of superstitious practices (worship of the tombs of the Saints, the institution of *Pirs* etc.) therefore, may easily lead a people who are gradually becoming modernised to believe that the Communist idea of religion is true.

The Communists also emphasise that the exclusion of women from the freedom to work, to make their own lives, and to enjoy equality in society with men is a feature of the mediaeval form of society which precedes the Communist revolution. But the Communist revolution, they say, will provide all the freedom and the opportunities which have been denied to women for centuries, and would remove at one blow all the old prejudices, and all the old traditions of seclusion, and allow women full freedom to develop their personalities in any direction they choose for themselves. In China where women were restricted by the social barriers of a mediaeval form of society, overnight they have been released by the revolution and given equal status and rights with men to avail of the opportunities which the country has to offer. Chinese women have worked tremendously

hard and have helped very much in accomplishing the transformation of their society.

Our weaknesses which the Communists could exploit are numerous, e.g., illiteracy, poverty, hunger, malnutrition, disease, unsanitary conditions, unemployment, insecurity, corruption, discrimination, inadequate educational facilities, bad hospitals, meagre wages and oppressive working conditions for peasants, industrial workers and labourers.

Further the existence of tribal, racial, provincial and sectarian jealousies, and prejudice against certain forms of labour (barbers, *dhobies*, sweepers etc.) also provides an ideal situation for the Communists to exploit. Anyone frustrated by the feeling that his profession or occupation or faith makes him a social outcast is readily susceptible to the promise of a revolution which will give him dignity and a status of equality with the more privileged others. One of the richest men in the Indian State of Kerala is a leading Communist today only because his aristocratic and conservative family threw him out when he decided to take up the profession of a laundry-man (*dhobi*) and make money by applying modern methods to his clothes washing business. Communism promises an immediate release to people maddened by the petty prejudices, taboos and rigidities of a mediaeval form of social and cultural life, and shows

them the prospect of a new world where everyone is equal and free from humiliation.

How then should the State in Pakistan influence the minds of the people and direct their transition from mediaeval to modern ways of thinking so that Pakistan might be safeguarded against the ideological offensive of Communism?

Educational Policy based on Islamic Principles

The only way to free the people quickly from the fetters of mediaeval fatalism and superstition is to undertake an intensive educational programme of impressing the ideology of Pakistan on the minds of the people, particularly in the rural areas. And in this respect we have no time to waste, but we must act and act quickly.

The Islamic principles of *equality*, *solidarity* and *freedom* must be drilled into the minds of the people as soon as possible by the use of all the modern techniques of mass education, radio, Press etc. These principles must be articulated clearly and taught in the context of modern life so that our people may understand why Islam offers a much better way of life than Communism.

Our educational policy should be assimilative, allowing the expression and justifying the existence of regional cultures and traditions, yet focusing its attention on a definite object, i.e., the dissemination of Islamic ideology.

Youth leagues and volunteer corps (male as well as female) should be organised on an all-Pakistan basis. To these bodies should be deputed the task of social service, reform of customs, commercial organisation and economic uplift of the rural areas. These organisations should promote the growth of *Muslim nationalism* among the people by reminding them through a series of lectures etc. of the past achievements of Islam and what Islam has still to accomplish in the moral, cultural and social development of humanity.

A new spirit should be infused in our peasants through the implementation of land reforms, and popularisation of new methods of agriculture, and schemes of mass education so that they might work very hard in order to achieve prosperity and happiness. They should also be made to reject all tribal, racial, provincial and sectarian jealousies and prejudices against certain so-called menial forms of labour. They should be taught that God has commanded all Muslims to respect and honour the dignity and equality of all men.

Introduction of Basic Democracies

Basic democracies should be introduced in the form of local self-governing bodies and trade unions so that our peasants and workers could organise themselves and develop their capacity for constructive criticism of the Government. They should be allowed to discuss their problems, sug-

gest improvements or modifications of the schemes of agriculture or industrialisation which the State desires to implement. In this way they should be encouraged to have a say in the governing of the country.

Introduction of the Principle of

National Service

Our university students (male as well as female) must not be permitted to get their degrees or diplomas unless and until they have had training in physical education and courage, and they have learnt that manual labour is a dignified form of service. They should be utilised in doing various forms of social or national service such as nursing, teaching adults as well as children in the villages, building houses, wells and roads, electrifying villages, working in the fields, assisting in the programmes of medical relief and other development programmes, and generally demonstrating to the peasants and workers, their feeling of *equality* and *solidarity* with them, their dedication and their willingness to work.

It would also be advisable to use the army in this connection because they have the facilities at their disposal to complete such feats of construction in no time. If this were done, it would help to create a feeling of *equality* and *solidarity* among our people and would show them that our army is an *army of peace*. Such a practical expression of

equality and *solidarity* is the most effective form of answer to Communist propaganda and the best way to overcome the present apathy, social arrogance, corruption and general uselessness of our educated youth.

Reform in the Civil and Military Services'

Academies, and Police Officers' Training Centres

Our Civil and Military Services' Academies and Police Officers' Training Centres have been organised on the British lines. In these institutions the future administrators, army and police officers of our country are given training in their respective fields, but at the same time, they are instructed (in accordance with the British Colonial services' principles) to remain detached and aloof from the common people. These future officers might be given some idea of Islam as a culture (as for instance, in the case of the trainees at the Civil Service Academies) but the object behind it is (again in accordance with the British Colonial services' principles) simply to train and to equip them to understand better the mental makeup of the common people.

It is very necessary to accomplish a reform in these institutions. The ideology of Islam should be drilled into the minds of the future officers. They must not only learn table manners, etiquette, riding etc. (the object of this kind of training is only to detach these officers from the common peo-

ple by inculcating in them a sense of social superiority and arrogance) but should learn to serve the common people. Furthermore, they must not only be taught to believe in *service* as an ideal, but should be instructed to demonstrate it by actually working with and assisting the common people. It is essential that our future officers should demonstrate to the common people their feeling of *equality* and *solidarity* with them, their dedication and their willingness to work.

Reform in the Corrective Centres, Jails and other Preventive Detention Institutions

In these institutions also it is necessary to accomplish a reform. The inmates of these institutions must be given an intensive indoctrination in the Islamic ideology and they must be provided with facilities of such instruction and training that they might attain the status of literate, self-respecting and skilled industrial workers.

The Provision for Medical Relief

The State must provide for medical relief on a national basis, and the people must organise all their energy and wealth to fight disease, unsanitary conditions and malnutrition. The people must be taught their responsibility to give selflessly of their time and energy to overcome these problems. The personnel and facilities of the army should also be used to help organise and administer pro-

grammes of public health, disease prevention and medical relief.

The Organisation of Press, Radio etc.

The public information services of the State should of course be used to propagate in an efficient and thorough-going manner the Islamic principles of *equality, solidarity and freedom*. At the same time these services should aim to build up public opinion which scorns the lazy, the arrogant, the cowardly and the corrupt, and which admires and extols the hard-working, the industrious, the selfless and the austere.

The Arts in the Service of the Community

It has already been suggested that the authors connected with the Aligarh movement *plus* Iqbal provide the cultural background of the ideology of Pakistan. Poets and writers like Hali, Shibli, Iqbal and others were concerned to use their talents to inspire the Muslims with vision and courage to accept the challenges of modern life. Pakistan very much needs many more such poets and writers who can promote love, unity and understanding among our people and annihilate all sectarian and provincial antagonisms from our midst. Our poets and writers should try to select such themes as can help the people learn to overcome some of their mediaeval habits and narrow-minded attitudes and as will encourage them to look towards the future in all aspects of their collective

life. Part of their responsibility should be to select those themes that will help to keep before the eyes of the Government the real needs and problems of the people. They should do all they can to help Pakistan become strong, prosperous and just. The State should do all it can to encourage such poets and writers.

In Pakistan it has frequently been asked: What is Islamic culture? When this question is raised it usually means: What is the connection between Islam and the fine arts? The function of great art has always been to awaken sensitivity, compassion, tolerance, courage, power, hope, joy and understanding of the complexity and depth of truly human life. In the opinion of Iqbal, the fine arts (e.g., painting, music and even poetry) which could transform Man and make him realise his felicitous function as the Deputy (*Khalifah*) of God on Earth are yet to be born in Islam. Islamic architecture, however, he regards as the only exception.

For determining the value of the fine arts in our collective life, the question raised should be: What kind of culture conforms to and expresses the ideology on which Pakistan is founded? To answer this we may first ask: What kind of fine arts have we had so far in Pakistan? In the case of painting, for example, we can see that generally speaking there are two main traditions influencing our artists. The first is our own classical *Mughal*

style. This kind of art represents a form of escapism. Its manner may be graceful and refined, but it is essentially effeminate and lacking in any real vitality and power. It does not pretend to move us deeply nor to communicate any serious message about life; it seems a fairy cobweb of flimsy lines which a puff of breath could dissipate.

Secondly, we have the influence of contemporary Western art, which is, generally speaking, the product of the hopelessness, confusion, defeatism and lack of faith through which the West is passing. Of course all Western art is not of this kind; the great artists of the Renaissance and Reformation such as Michelangelo and Rembrandt produced art with great spiritual force capable of instilling in men faith, power, hope and courage. Unfortunately we have generally preferred to be influenced by the more sordid and defeatist forms of Western art rather than by the works of the men who passionately believed in God and expressed their faith with unequalled power, vision and sensitivity.

We need to liberate our art from bondage of all these effeminate, defeatist and deadening influences, and let it burst forth as a powerful affirmation of our faith in ourselves and in our future. We need a virile, generous, expansive and strong art which can rouse our people to action, and transform their narrow and distrustful attitudes into a

broad tolerance and a passion for righteousness. We need paintings which can communicate to us the same sense of simplicity, magnificence, purity, dignity and power which we experience when we look at the great masterpieces of Islamic architecture. The State should encourage painters whose work will give our people a message of faith, hope and courage. It should also, of course, encourage the development of music and other modes of art which could help in the same way to express our ideology.

In modern progressive countries (particularly the U.S.S.R. and China) the films and the theatre are used to communicate new ideas and methods to the masses of the people. Drama has always been one of the most effective modes of touching peoples' hearts and inspiring in them new insights into the meanings and possibilities of life. Syed Ahmad Khan also recognised the significance and importance of the theatre and himself once appeared on the stage at Aligarh for the purpose of collecting money for his College. We should use the stage and the films to help disseminate the ideology on which Pakistan is founded and to show our people in vivid pictorial form what the future can be if they will respond creatively to the challenges of modern life. The State should, therefore, encourage the development of the theatre and the use of films for these ends.

Agricultural and Industrial Policy

After the establishment of Pakistan the recent decision of the Government to implement land reforms has been the first positive step towards the realisation of the ideals on which Pakistan was founded. Some critics maintain that because Islam regards private ownership as a sacred trust, therefore, the land reforms were contrary to the Injunctions of Islam. They fail to realise, however, that God has continuously emphasised in the Quran that those individual Muslims who 'have' should give their all to the support and welfare of the 'have-nots'. The ideals of Islamic *equality*, *solidarity* and *freedom* can only be realised in a social and economic structure in which all the members of the Community share as equally as possible in the prosperity of the country. In a situation where most of the land is owned by a few rich families whose vast properties enable them to wield immense political power and influence, and where there are countless masses of impoverished and landless tenants, the resulting inequality would clearly be contrary to the spirit of Islam. The land reforms and their implementation by the State are, therefore, not only justified by practical necessity, but are also in conformity with the spirit of Islam.

The problem with regard to industry is, however, somewhat different. We are only beginning

to industrialise our country, and we are very much hampered by the absence of a large and skilled class of industrialists, managers and technicians. We also face an acute shortage of foreign exchange. At present, therefore, we are forced to entrust foreign exchange, for the purpose of purchasing materials and equipment, only to those few industrialists who have experience and who have proved their competence. This puts us in the unfortunate position of encouraging and developing monopolies, and of placing immense and rapidly increasing wealth in the hands of ten or fifteen individuals. Even though the Government may tax these individuals, their wealth continues to increase rapidly, and in any case most of them evade taxation and increase their wealth by black-marketing and other illegal activities. Therefore, just as in the past the landlords gained immense political power because of their property, so in the future it is likely that these few extremely rich industrialists will gain political power. Eventually we will either have to control and suppress them, or be dominated by them.

It has already been stated that from the standpoint of Islam, the State is responsible for maintaining a fair distribution of wealth among all its citizens. We should, therefore, prevent the concentration of wealth and means of production and distribution in the hands of the few to the detri-

ment of the interest of the many. But no structures of nationalisation can in themselves solve this problem because the structures cannot guarantee that men will be found capable of doing in a competent, efficient and selfless way the difficult and creative jobs that our present industrialists do for their own selfish ends. We can only implement the Islamic ideals of a just distribution and use of wealth if we can produce men who can do well the work of setting up and running industries, and who are ready to work for God and the Community rather than themselves.

Experienced business people usually do not believe that men ever would work as hard for the Community as they would for themselves. This belief is really a denial of the kind of society God has promised in the Quran. We can only answer their disbelief by developing an educational system which will produce capable men who will prove by their hard, dedicated and fruitful work that God's promises are not an illusion.

We must keep in mind while planning our economy that we should always aim at developing a form of society in which the wealth of the country may be used in the most constructive way for the benefit of everybody. Keeping this end in view, we should then proceed to take each step in terms of the needs, requirements and opportunities of the moment.

The industrial policy which we have been so far pursuing has led to the establishment of monopolies, and this is perhaps unavoidable under existing conditions. Our next step, however, should be to decentralise industry and to encourage its growth all over Pakistan, especially in those areas where raw materials are available (e.g., for the establishment of wood and allied industries—Jhelum). In areas such as Peshawar and Montgomery where the fruit industry has developed, allied industries like canning, printing of labels etc., should also be promoted. At the same time, small industrialists should be provided with power facilities (gas, fuel, electricity etc.) and encouraged so that from the healthy competition among them the quality of goods may be improved.

The State should provide facilities for technical training particularly in the industrial areas and should encourage students after matriculation to take up this form of training rather than studying arts etc. The decentralisation of industry in this way and the growth of factories and technical schools in the raw material producing areas should automatically lead to the raising of the standard of living and should bring prosperity in many different parts of Pakistan. We should always bear in mind our intention that in the future when the country has been successfully and thoroughly in-

dustrialised, the industrial workers who are the real producers of wealth should themselves be provided with shares in, control over, and responsibility for the industrial life of the country. It is very necessary that our economists and those who make the economic policies of our Government should have a clear understanding of the ideals which we are struggling to realise in Pakistan.

The Establishment of the Institute of Science

What is it that gives such material strength to the great powers which are presently dominating the world scene? It is obviously their use of science and scientific method for the material advancement of their peoples.

The modern Muslim revivalists realised fully that the survival of the Muslim Community depended on the acquisition of the new sciences. Syed Ahmad Khan even ventured to translate into Urdu the Western scientific works for the purposes of encouraging research in this field. He, accordingly, founded a Scientific Society (in 1863) which undertook the task of translating standard European scientific literature into Urdu. He, at the same time, started the publication of a weekly called the Aligarh Institute Gazette (1866-1898) which laid emphasis on the acquisition of modern sciences.

Exhorting the Muslims to grasp the secret of Western power, Jamal-al-Din Afghani also stress-

ed the acquisition of the techniques of European progress, which really depended on the advancement of modern sciences.

Iqbal was concerned to prove that the spirit of Islam is not only favourable to the development of science, but that the basic attitude of the Quran is scientific in the sense that in connection with Man's mastery over matter it attaches great importance to the knowledge derived through sense perception. In other words, Iqbal holds that the very spirit of the Quran is empirical.

Iqbal quotes from Briffault's *Making of Humanity* to show that the Muslims were the originators of the experimental method and that in the Middle Ages their experimental method was widespread and eagerly cultivated throughout Europe.

Briffault observes: "Science is the most momentous contribution of Arab civilization to the modern world; but its fruits were slow in ripening. Not until long after Moorish culture had sunk back into darkness did the giant which it had given birth rise in his might. It was not science only which brought Europe back to life. Other and manifold influences from the civilization of Islam communicated its first glow to European life. . . . For although there is not a single aspect of European growth in which the decisive influence of Islamic culture is not traceable, nowhere is it so clear and

momentous as in the genesis of that power which constitutes the permanent distinctive force of the modern world, and the supreme source of its victory—natural science and the scientific spirit.... The debt of our science to that of the Arabs does not consist in startling discoveries of revolutionary theories; science owes a great deal more to Arab culture, it owes its existence. The ancient world was, as we saw, pre-scientific. The Astronomy and Mathematics of the Greeks were a foreign importation never thoroughly acclimatized in Greek culture. The Greeks systematized, generalized, and theorized, but the patient ways of investigation, the accumulation of positive knowledge, the minute methods of science, detailed and prolonged observation and experimental inquiry were altogether alien to the Greek temperament. Only in Hellenistic Alexandria was any approach to scientific work conducted in the ancient classical world. What we call science arose in Europe as a result of a new spirit of inquiry, of new methods of investigation, of the method of experiment, observation, measurement, of the development of Mathematics in a form unknown to the Greeks. That spirit and those methods were introduced into the European world by the Arabs."

Now, however, we live in an age when the techniques and skills of scientific experimentation and research has been highly organised and de-

veloped. New discoveries and inventions are continuously being made. The nation which is farthest ahead in the field of science and technology is inevitably going to be the master of the earth. New discoveries have given Man unprecedented power both to destroy and to create. Our only choice is either to compete and try to achieve an equal level of scientific development with other nations or to become their helpless dependents.

It is, therefore, suggested that the scientific talent of Pakistan should be organised under an Institute of Science which should have all the necessary equipment and facilities for doing research. We should try to investigate possibilities of using atomic power for peaceful purposes. The State should do all it can to ensure that our younger generation is given guidance and help in experimental research by the best scientists who can be procured for this purpose.

Social Democracy

The most essential measure to safeguard Pakistan against the ideological invasion of Communism is to develop a form of social democracy which is in accordance with the principles of Islam. It should remove illiteracy, and provide free and compulsory education for all. It should provide for all facilities for just and humane conditions of work, and an adequate livelihood. It should provide the basic necessities of life, such as food,

clothing, housing, education, medical relief for everybody. It should prevent the concentration of wealth and means of production and distribution in the hands of the few to the detriment of the interest of the many. It should be a *Welfare State*. It should do away with obvious manifestations of gross social inequality. The rich should be taxed until no rich people exist any longer.

Our leaders should live as simply and as austere as possible, and should inculcate into the minds of the people the idea that ostentatious living in the midst of poverty is a betrayal of the principles of Islam, a form of idolatry, and an insult to the God of Islam. They should set the example of selfless and devoted hard work for the love, service and betterment of the people.

A nation like an individual usually passes through six stages of development which are birth, infancy, adolescence, maturity, old age and death. If a nation has attained old age (like old China) but has not died (like ancient Rome) then it might be rejuvenated and the cycle might be repeated. The examples of infant nations are Pakistan, India, Ceylon, Indonesia etc. Such nations usually concentrate on themselves and try to develop and exploit their means fully. They require for their development complete peace because they live under constant fear and danger of being grabbed by adolescent powers. The most outstanding

example of such an adolescent power in the world today is the U.S.S.R. Such nations having become strong internally often look greedily towards others and are always a threat to world peace (e.g., Nazi Germany, Fascist Italy). They usually have dictatorships, and manage to acquire territory and power. The example of mature nations may be England and France and other Colonial Powers. Such nations having attained maturity feel more inclined to give up and yield their territorial possessions and dominions to self-determination and independence.

It is clear from the above that Pakistan is yet in her infancy and therefore, must concentrate entirely upon constructing herself. She must have friendly relations with her neighbours and work for peace because it is essential for her development. Furthermore, she must be vigilant and alert in order to see which are the adolescent nations around her who might threaten to swallow her up. Therefore, it is essential for Pakistan to build up her defence.

The Maintenance of Friendly Relations with India

It has already been pointed out that Pakistan is not based on the philosophy of *hatred* for anybody. Therefore, it should be against our policy to inculcate among our people hatred for Hinduism or Communism. As for Hinduism, we must realise that a war with India would benefit neither Pak-

istan nor India, but would be a gain to Communism. Therefore, Pakistan must at all costs avoid going to war against India. The real object behind the partition of the Indian sub-continent was, as has already been stated, to emancipate Islam politically and culturally, and not to sow seeds of discord between Islam and Hinduism. Now since that independence has been achieved there is no reason why there should not be harmony between Pakistan and India, and why our peoples should not co-operate as much as possible in all their common problems.

Defence

At any rate, following a policy of peace and friendship with each and every nation of the world does by no means imply that Pakistan should not strengthen her defences against foreign aggression. Indeed the bulk of our Budget is spent on defence instead of national reconstruction, but it seems necessary to make this sacrifice at this stage of our development.

The Working for a Unification of the Muslim World

It is also part of our ideology to work for the unification of the Muslim world. Such a unification is not only an article of faith with us but is also essential for our defence. We have already formed alliances with Iran and Turkey, but we should try our best to win the friendship of Afghanistan and the Arab world.

We should attempt to avoid the division of the world of Islam into the Arabs and the non-Arabs (*Ajam*). The history of Islam shows that such a division in the Muslim world has been generally very harmful to Islam.

Alignment with the Western Bloc

Pakistan, as a young country, cannot afford to follow a policy of isolation or neutralism. Although we may have differences with some of the Western Powers (e.g., England and France for still pursuing a colonial policy), we share most of their problems in common. We, therefore, must through friendly means persuade the Western Powers to give independence to, and acknowledge the right of self-determination of their colonies.

Pakistan must remain closely linked with the United States and the free world because their and our problems, needs and requirements are similar. Similarly Pakistan should continue to remain a member of the Commonwealth. It is suggested that to make the Commonwealth an effective force of unity and real co-operation among its member nations, the Head of the Commonwealth should be one of the Heads of State of the participating nations. The office should rotate among the Commonwealth nations and each Head of the Commonwealth should remain in office for three years. The Commonwealth Prime Ministers' Conferences should be held in the different capitals of the Com-

monwealth countries. For the purpose of furthering understanding and friendship, the Head of the Commonwealth should regularly tour the Commonwealth countries.

The Adherence to the United Nations Charter

Since Pakistan follows the Islamic ideal of peace towards the entire world and is already a member of the United Nations, she should continue to uphold and support the United Nations Charter and should be willing to submit all her disputes to arbitration.

It has been made abundantly clear that spiritual values should form the basis of all social, political and economic activity in Pakistan. History shows that only those people who truly acknowledge the reality of God as *Creator* and *Judge* of the world can have a proper conception of the dignity, equality and freedom of Man. Therefore, it is only religion that can save the modern world from moral corruption and exploitation, class, racial and ideological hatred, greed for wealth and lust for power, and offer practicable principles on which a new and better world can be built and ordered.

"Both nationalism and atheistic socialism," says Iqbal "at least in the present state of human adjustments, must draw upon the psychological forces of hate, suspicion, and resentment which

tend to impoverish the soul of man and close up his hidden sources of spiritual energy. Neither the technique of mediaeval mysticism nor nationalism nor atheistic socialism can cure the ills of a despairing humanity. Surely the present moment is one of great crisis in the history of modern culture. The modern world stands in need of biological renewal. And religion, which in its higher manifestations is neither dogma, nor priesthood, nor ritual, can alone ethically prepare the modern man for the burden of the great responsibility which the advancement of modern science necessarily involves, and restore to him that attitude of faith which makes him capable of winning a personality here and retaining it hereafter. It is only by rising to a fresh vision of his origin and future, his whence and whither, that man will eventually triumph over a society motivated by an inhuman competition, and a civilization which has lost its spiritual unity by its inner conflict of religious and political values."¹¹

NOTES

Chapter 1

1. 49; verse 13.
2. Muqqadima. p. 220.
3. Reconstruction of Religious Thought in Islam.
p. 154.
4. Ibid., p. 168.
5. Ibid., pp. 173, 174.
6. Ibid., pp. 175, 176.
7. Islam and Ahmadism pp. 31, 32, 33.
8. Ibid., pp. 36, 37.
9. Ibid., p. 40.
10. Ibid., pp. 35, 36.
11. Ibid., pp. 33, 34.
12. Ibid., p. 32.

Chapter 2

1. 3; verse 189.
2. 2; verse 30.
3. Reconstruction of Religious Thought in Islam.
pp. 174, 175.
4. Ibid., p. 154.
5. 4; verse 1.
6. 4; verse 135.
7. 3; verse 180.
8. 2; verse 256.
9. 10; verse 100.
10. 49; verse 10.
11. 49; verse 13.
12. 3; verse 103.

13. 3; verse 104.
14. Islam in Modern History. pp. 15, 16.
15. 59; verse 23.
16. 18; verse 30.
17. 17; verse 15.
18. 53; verses 38-39.
19. 13; verse 11.
20. 42; verse 38.
21. 3; verse 159.
22. 4; verse 59.
23. 5; verse 2.

Chapter 3

1. 6; verse 152.
2. 2; verse 188.
3. 67; verse 15.
4. 22; verse 40.

Chapter 4

1. Quaid-i-Azam Speaks. p. 129.
2. Presidential Address: Allahabad 1930. p. 7.
3. Letters of Iqbal to Jinnah. p. 17.
4. The Indian Annual Register 1932, vol. 1. pp. 305, 306.
5. Reconstruction of Religious Thought in Islam. pp. 7, 8, 15, 97.
6. The Indian Annual Register 1932, vol. 1. p. 306.
7. Reconstruction of Religious Thought in Islam. pp. 151, 152.
8. The Indian Annual Register 1932, vol. 1. p. 306.
9. Quaid-i-Azam Speaks. p. 133.
10. Presidential Address: Pakistan Philosophical Congress, 1959, p. 19.
11. Islam in Modern History. pp. 292, 293.

Chapter 5

1. "Werke" viii. pp. 232, 233 quoted Chatterton-Hill: The Philosophy of Nietzsche. pp. 115, 116.
2. 23; verses 1-11.
3. 2; verse 177.
4. 24; verse 30.
5. 24; verses 27-28.
6. 33; verse 70.
7. 5; verse 8.
8. 49; verses 9-10.
9. 49; verse 12.
10. 49; verse 15.
11. 6; verses 152-153.
12. 17; verses 23-24.
13. 33; verse 58.
14. 49; verse 11.
15. 49; verse 12.
16. 107; verses 4-7.
17. 47; verse 7.
18. 58; verse 22.
19. 49; verse 14.
20. 2; verse 190.
21. 4; verse 104.
22. 4; verse 74.
23. Reconstruction of Religious Thought in Islam. pp. 72, 73.
24. Ibid., p. 10.
25. Ibid., p. 180.
26. Ibid., p. 93.
27. Iqbal's Educational Philosophy. pp. 42, 43.

Chapter 6

1. Presidential Address: Allahabad 1930. p. 6.
2. Ibid., quoted p. 6.

3. Kitab-al-Hind trans. by E. Sachau, vol. 1. p. 17
4. Ibid., p. 179.
5. Ibid., p. 19.
6. Speeches and Writings of Jinnah ed. by Jamil-ud-Din Ahmad vol. 1., pp. 178, 253.
7. Enlist India for Freedom. pp. 58, 59, 62.
8. Presidential Address: Allahabad 1930. pp. 7, 8, 15.
9. Speeches and Writings of Jinnah ed. by Jamil-ud-Din Ahmad. vol. 1. p. 254.
10. Unwilling Journey (A Diary from Russia). p. 142.
11. Reconstruction of Religious Thought in Islam. pp. 187, 188.

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